



CHAPTER ccxvii.

An Act to authorise the urban district council of A.D. 1903.

Beckenham in the county of Kent to carry out street
improvements to construct and work tramways and
to make further provision in regard to the electricity
undertaking of the Council and for the improvement
health local government and finance of the district and
for other purposes. [11th August 1903.]

WHEREAS the urban district of Beckenham in the county
of Kent (in this Act called "the district") is under the
government of the urban district council of Beckenham (in this
Act called "the Council") and the Council are the local authority
of the district within the meaning of the Tramways Act 1870 :

And whereas it is expedient that the Council should be
empowered to widen and improve certain streets and places within
the district and to acquire the lands in this Act respectively
mentioned or referred to :

And whereas it is expedient that the Council should be
authorised to lay down construct and maintain tramways in the
district and to the extent herein mentioned in the borough of
Lewisham in the county of London and themselves or by their
lessees to work such tramways by animal or mechanical power :

And whereas it is expedient that further and better provision
be made with reference to buildings streets and sanitary matters
and for the improvement health local government and finance of
the district and that the powers of the Council in relation thereto
should be enlarged and extended :

And whereas by the Beckenham Electric Lighting Order 1893
confirmed by the Electric Lighting Orders Confirmation (No. 2)

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A.D. 1903. — Act 1893 the Council were empowered to produce and supply electrical energy within the district for public and private purposes and it is expedient to make further provision with regard to the supply of electrical energy by the Council:

And whereas it is expedient to authorise the Council to supply electrical energy for the working of the above-mentioned tramways and certain authorised tramways in adjoining districts and for other purposes and to make further provision with regard to their electricity undertaking :

And whereas the Council and their predecessors the Local Board for the district having in the exercise of their statutory powers from time to time borrowed various sums of money which bear different rates of interest and are subject to different conditions as to time of repayment and otherwise and it is expedient that provision should be made for equating the periods for repayment of the sums so borrowed as hereinafter provided :

And whereas it is expedient that the Council should be enabled to raise moneys for the purposes of this Act :

And whereas estimates have been prepared by the Council in relation to the following purposes in respect of which they are by this Act authorised to borrow money and such estimates are as follows :—

For the purchase of land for and for the road	£
widenings and improvements by this Act authorised	- - - - - 68,250
For and in relation to tramway purposes	- - - 55,000
For and in relation to the wiring of houses and supply of electric fittings	- - - 20,000
For the extension of the existing generating station and for the provision of additional machinery cables and apparatus	- - - 38,000

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas plans and sections showing the lines and levels of the proposed street widenings and improvements tramways and other works authorised by this Act and a book of reference to the plans containing the names of the owners or reputed owners and lessees or reputed lessees and of the occupiers of the lands required

for the purposes of this Act were duly deposited with the clerks of the peace for the counties of Kent and London which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference : A.D. 1903.

And whereas an absolute majority of the whole number of the Council at a meeting held on the twenty-seventh day of October one thousand nine hundred and two after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *Beckenham and Shortlands Chronicle* a local newspaper circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that it was expedient to promote the Bill for this Act :

And whereas such resolution was published twice in the *Beckenham Journal* a local newspaper circulating in the district and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the sixteenth day of February one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas the owners and ratepayers of the district by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the *Beckenham Urban District Council Act 1903.* Short title.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Lands and Street Works.

Part III.—Tramways.

Part IV.—Recreation Grounds.

Part V.—Infectious Disease.

Division
of Act into
Parts.

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- Part VI.—Tuberculosis.
Part VII.—Streets Buildings and Sewers.
Part VIII.—Advertisements and Sky Signs.
Part IX.—Sanitary Provisions.
Part X.—Electricity.
Part XI.—Fire Brigade.
Part XII.—Finance.
Part XIII.—Miscellaneous.

Incorporation of
general Acts.

3. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) and Parts II. and III. of the Tramways Act 1870 so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are incorporated with and form part of this Act.

Interpretation.

4. In this Act the following words and expressions have the meanings hereby assigned unless the subject or context otherwise requires :—

- “The district fund” and “general district rate” mean the district fund and general district rate of the district ;
“Daily penalty” means penalty for each day on which an offence is continued after conviction ;
“The clerk” “the surveyor” “the medical officer” “the inspector of nuisances” mean respectively the clerk and the surveyor to the Council and the medical officer of health and inspector of nuisances of the district and “the office” in relation to any of the said officers means the office of that officer at the Council offices or at such other place in the district as the Council may from time to time appoint ;
“The tramway” or “the tramways” means the tramways by this Act authorised ;
“The tramway undertaking” means the tramway undertaking of the Council for the time being authorised ;
“Tramway revenue” means all revenue of the tramway undertaking ;
“Mechanical power” includes steam electrical and every other motive power not being animal power ;
“Engine” includes motor ;
“The Vagrancy Acts” means the Vagrancy Act 1824 and any Act for the time being in force amending the same ;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 applies for the time being within the district ; A.D. 1903.

“Dairyman” means any cowkeeper purveyor of milk or occupier of a dairy ;

“Dairy” means and includes any farm farmhouse cowshed milk store milk shop or other place from which milk is supplied or in which milk is kept for purposes of sale ;

“Sky sign” means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support The expression “sky sign” shall also include any balloon parachute or similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any house building structure or erection of any kind or on or over any street or public way but shall not be deemed to include—

Any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purposes of any advertisement or announcement ;

Any sign on any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or the cornice or blocking course of any wall or to the ridge of a roof Provided that such board frame or other contrivance be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported ;

Any such word letter model sign device or representation as aforesaid which relates exclusively to the business of a railway company and which is placed or may be placed wholly upon or over any railway railway station yard platform station approach or other property belonging to a railway company and

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—

which is also so placed that it could not fall into any street or public place ;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security (not being annuities rentcharges or securities transferable by delivery) authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the Council.

Unless the subject or context otherwise requires words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Act or by the Public Health Acts have in this Act the same respective meanings.

PART II.

LANDS AND STREET WORKS.

Power to
widen roads.

5. Subject to the provisions of this Act the Council may in the lines and according to the levels shown on the deposited plans and sections relating thereto make the street or road widenings hereinafter mentioned and may enter upon take and use any of the lands delineated on the said plans and described in the deposited book of reference relating thereto required for those purposes or in connection therewith (that is to say) :—

They may widen and improve

Beckenham Road :—

On the north side—

(1) From Chaffinch Road to Hayne Road ;

On the south side—

(2) From Sidney Road for a distance of 1·10 chains or thereabouts in an easterly direction ;

(3) From Hayne Road in a westerly direction for 2·00 chains or thereabouts ;

(4) From Hayne Road to Croydon Road :

High Street :—

On the north side—

(1) From the southern end of Rectory Road for a distance of 9 chains or thereabouts in an easterly direction ;

- (2) Between points respectively 2·20 chains and 5·00 chains or thereabouts from the centre of the entrance to “The Cedars” in an easterly direction; A.D. 1903.

On the south side—

- (3) For a distance of 4·60 chains or thereabouts in an easterly direction from the passage way to Messrs. Tilling’s stables;
 (4) From a point 1·60 chains or thereabouts north-east of Burnhill Road to Fairfield Road;
 (5) From Fairfield Road for a distance of 2 chains or thereabouts in an easterly direction:

Kent House Road :—

On the north-west side—

- (1) From Somerville Road for a distance of 1·30 chains or thereabouts measured in a north-easterly direction;
 (2) At the bend in the road opposite Kent House Lane for a length of 2 chains or thereabouts;

On the south-east side—

- (3) Between points respectively situate 4·40 chains and 8·40 chains or thereabouts from Lennard Road measured in a north-easterly direction:

Provided always that the Council shall not acquire under the powers of this Act any greater portion of the property numbered on the deposited plans 62 in the urban district of Beckenham than a strip fronting on the road varying from 18 inches in width at the eastern boundary of the said property to nothing at the western boundary thereof.

Notwithstanding anything contained in this Act or shown on the deposited plans and sections the Council shall not make any street or road widenings in that part of Kent House Road which is situate within the metropolitan borough of Lewisham.

6. Subject to the provisions of this Act and in addition to the other lands which the Council are by this Act authorised to purchase and acquire they may enter upon take and use the lands hereinafter described delineated on the deposited plans and described in the deposited book of reference (that is to say) :—

Power to
take and use
lands.

- (1) Land situate in Beckenham Road at its junction with Chaffinch Road bounded on the south by Beckenham Road on the north-east by Chaffinch Brook on the south-east by the South Eastern Railway and on the north-west by Chaffinch Road:

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- (2) Land situate on the west side of Arthur Road abutting on and immediately to the south of Arthur Terrace having a frontage of 2·60 chains and an average depth of about 1·30 chains or thereabouts :
- (3) Lands situate on the north side of High Street partially bounded on the west by a fence distant 2·20 chains or thereabouts from Rectory Road and on the east by "The Cedars" and grounds connected therewith and having an average depth from High Street of 2·50 chains or thereabouts :
- (4) Lands situate on the north side of High Street extending from and inclusive of premises Nos. 102 to 108 High Street bounded on the west by the coach house and grounds attached to "The Cedars" and on the north by premises No. 100 High Street and its curtilage :
- (5) Lands situate on the south side of High Street bounded on the south by the passage and yard situate on the north side of shop No. 67 High Street and by Christ Church Villas on the east side by Fairfield Road and Christ Church Villas :
- (6) Lands abutting on the south-east side of Croydon Road and extending from the northern boundary of the recreation ground to a point 0·50 chain south of the junction of Croydon Road and High Street :
- (7) Land abutting on the south side of Croydon Road situate between Langley Road and Eden Road and forming part of the forecourts of houses Nos. 19 to 39 inclusive and Nos. 43 and 45 and shops Nos. 47 to 51 inclusive :
- (8) Land abutting on the north side of Bromley Road and extending from "The Knoll" to Westgate Road :
- (9) Land on the east side of Scott's Lane extending south of Bromley Grove for a distance of 2 chains or thereabouts measured in a southerly direction :
- (10) Land at the south-west corner of Hayes Lane at its intersection with Wickham Road extending for a distance of 2·20 chains or thereabouts in Hayes Lane measured in an easterly direction and 1·30 chains or thereabouts in Wickham Road measured in a southerly direction.

Purchase
of lands by
agreement.

7. In addition to the other lands which by this Act the Council are authorised to purchase and acquire they may purchase or acquire by agreement or take on lease for the purposes of their

tramway undertaking and may hold any lands elsewhere than in the county of London not exceeding ten acres and they may on such lands and on any lands purchased or acquired under the authority of this Act erect or construct and hold carriage and engine houses shelters stables offices buildings and other conveniences in connection with their tramway undertaking but nothing in this Act shall exonerate the Council from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any land purchased or acquired or taken on lease under the powers of this section.

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8. In estimating the amount of compensation or purchase money to be paid by the Council under this Part of this Act the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street shall be fairly estimated and shall be set off against the said compensation or purchase money.

Benefit of improvement to be taken into consideration in fixing compensation.

9. Subject to the provisions of this Part of this Act and to section 308 of the Public Health Act 1875 the Council in the construction of the street works by this Act authorised may deviate laterally from the lines thereof as shown on the deposited plans to the extent of the limits of lateral deviation shown thereon and they may deviate vertically from the levels shown on the deposited sections to any extent not exceeding two feet upwards or downwards.

Limits of lateral and vertical deviation for street works.

10. The Council shall not raise sink or otherwise alter the position of any pipe tube wire or apparatus of the National Telephone Company Limited laid down or used for telephonic purposes unless and until they have made proper substitutes for such pipes tubes wires or apparatus and during any such alteration they shall cause as little detriment and inconvenience as circumstances admit and shall make reasonable compensation for any damage caused by such alteration.

For protection of National Telephone Company Limited.

11. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Council after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Kent for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same

Correction of errors &c. in deposited plans and book of reference.

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Period for
compulsory
purchase of
lands.

12. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Restriction
on taking
houses of
labouring
class.

13. The Council shall not under the powers of this Act purchase or acquire in any borough or other urban district or (elsewhere than in any borough or urban district) any parish ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the fifteenth day of December last but have been or shall be subsequently so occupied.

If the Council purchase or acquire any house or houses under the powers by this Act granted in contravention of the provisions of this section they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them The expression "house" means any house or part of a house occupied as a separate dwelling.

14. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege required for the purposes of this Act (not being an easement right or privilege of water in which any persons other than the grantors have an interest) in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

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Power to
owners to
grant ease-
ments &c.

15. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Council of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Council and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

Owners may
be required
to sell parts
only of
certain pro-
perties.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Council or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties" :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Council that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Council such portion only without the Council being obliged or compellable to purchase the whole the Council paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Council allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition

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to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Council have compulsory powers of purchase) can be so severed :

- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Council the portion which the tribunal shall have determined to be so severable without the Council being obliged or compellable to purchase the whole the Council paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Council may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Council in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall

having regard to the circumstances of the case and their final determination think fit. A.D. 1903.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Provided always that the provisions of this section shall not apply to the property numbered on the deposited plans 37 in the urban district of Beckenham and required for the purposes of a road widening if the Council shall acquire more than 15 inches of any projection or convenience extending beyond the front wall of the main building on such property or any portion of such main building.

16. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit and may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands acquired by them under this Act or any interest therein and may sell exchange or dispose of any rents reserved on the sale exchange lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange. Power to retain sell &c. lands.

17. For the protection of the South Eastern Railway Company the London Chatham and Dover Railway Company and the South Eastern and Chatham Railway Companies' Managing Committee (hereinafter respectively referred to as "the railway company") the following provisions shall unless otherwise agreed between the Council and the railway company apply and have effect with respect to the works authorised by this Part of this Act (that is to say):— For protection of South Eastern and London Chatham and Dover Railway Companies in respect of street works.

- (1) The Council shall one month before commencing the widening of the bridge carrying the Beckenham Road

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over the Mid Kent line of the railway company's railway (hereinafter called "the railway") and the lowering of the said road under the bridge carrying the Norwood spur line of the railway over the said road submit proper and sufficient detailed plans sections elevations and specifications thereof to the engineer of the railway company who shall within one month of the receipt of the same express in writing his approval or disapproval thereof. If such engineer fail to express his disapproval of the said detailed plans sections elevations and specifications within the said period of one month he shall be deemed to have approved the same but in the event of his expressing his disapproval the questions in difference shall be referred to arbitration as hereinafter provided and settled by such arbitrator before the commencement of the works and the said works shall be constructed in all respects in accordance with the detailed plans sections elevations and specifications so agreed or settled or with such modifications or alterations as may from time to time be agreed upon by the respective engineers of the railway company and the Council :

- (2) The said works shall be constructed under the superintendence and to the reasonable satisfaction of the railway company :
- (3) The Council shall bear and on demand pay to the railway company the reasonable expense of the employment by them during the construction of the said works of a sufficient number of inspectors signalmen and watchmen to be appointed by them for watching the railway and the conduct of the traffic thereon with reference to and during the execution of the said works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of any person or persons in the employ of the Council with reference thereto :
- (4) Should it be necessary in widening the said bridge or in consequence of such widening for the railway company to alter or remove the signals telegraph posts and wires on or connected with the railway at or near the said bridge or to substitute others therefor the Council shall bear and on demand pay to the railway company the expense of and connected with such alteration and removal or of restoring the same to their former or placing them in a different

position or of substituting other signals telegraph posts and wires therefor : A.D. 1903.

- (5) The Council shall from time to time be responsible for and make good to the railway company all losses damages and expenses which may be occasioned to them or any of their works or property or to the traffic on the railway or to any company or persons using the same or otherwise by reason of any act default or omission of the Council or of any person in their employ or of their contractors or otherwise in constructing the said works and the Council shall effectually indemnify and hold harmless the railway company from all claims and demands upon or against them by reason of any such act default or omission :
- (6) The Council shall not for the purposes of this Act without in every case obtaining the previous consent of the railway company under their common seal purchase or take any of the lands or property belonging to the railway company but they may purchase and take and the railway company may and shall sell and grant accordingly an easement or right of using such part or parts only of such land and property as shall be necessary for the purposes of the said widening but no further or otherwise :
- (7) The Council shall on demand pay to the railway company the extra cost of any maintenance that may be incurred in connection with the widening of the bridge over the Mid Kent line :
- (8) If any dispute shall arise between the Council and the railway company respecting the matters and provisions aforesaid or any of them such dispute shall be settled by an arbitrator to be agreed upon between the parties or in case of difference to be appointed on the application of either party by the President of the Institution of Civil Engineers.

PART III.

TRAMWAYS.

18. Subject to the provisions of this Act and of Parts II. and III. of the Tramways Act 1870 the Council may make form lay down work use and maintain the tramways hereinafter described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and

Power to
make tram-
ways.

A.D. 1903. sections with all proper rails plates works and conveniences connected therewith Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways hereinbefore referred to and authorised by this Act are—

Tramway No. 1 wholly situated in the district 1 mile 0 furlongs 7·5 chains in length of which 6 furlongs and 7·80 chains will be double and 1 furlong 9·70 chains will be single commencing in Beckenham Road at the boundary of the urban district of Penge by a junction with the authorised tramways of the British Electric Traction Company Limited and proceeding thence in an easterly direction along Beckenham Road and High Street and terminating in High Street at the west end of Manor Road :

Tramway No. 2 wholly situated in the district 5 furlongs 3·90 chains in length of which 4 furlongs 0·10 chain will be double and 1 furlong 3·80 chains will be single commencing by a junction with the authorised tramways of the said British Electric Traction Company Limited at the parish boundary in Parish Lane at the end of Thesiger Road and proceeding thence in a northerly direction along Thesiger Road and Kent House Road and terminating at the boundary of the metropolitan borough of Lewisham in Kent House Road :

Tramway No. 3 wholly situated in the parish and metropolitan borough of Lewisham in the county of London 1 furlong 3 chains in length of which 1 furlong 2 chains will be double and 1 chain will be single commencing by a junction with Tramway No. 2 at the said boundary of the metropolitan borough of Lewisham and proceeding thence in a northerly direction along Kent House Road and terminating at the junction of Kent House Road with High Street Sydenham :

And for the purposes of the tramways the Council may alter in the manner shown on the deposited sections the levels of Beckenham Road from Barnhead Road to Arthur Road under and on both sides of the bridge carrying the Crystal Palace and West End Railway over that road :

Provided always that if the Council lower the levels of the said road so as to leave over any water main or other pipe of the company of proprietors of the Lambeth Waterworks in any part a covering of less than the covering now existing the Council shall lower such water main or other pipe so as to provide a covering not less than the covering now existing or otherwise protect such main or pipe from frost or injury by artificial covering to the reasonable satisfaction of the engineer of the said company of proprietors Provided also that it shall not be necessary for the Council to provide a greater covering than two feet nine inches from the surface of the road in the case of a main or pipe having an internal diameter not exceeding seven inches or than two feet from the surface of the road in the case of a main or pipe having an internal diameter exceeding seven inches.

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19. Where any part of any street or road or the carriageway thereof is by this Act authorised to be widened the Council shall not lay down or construct any tramway under the powers of this Act in the part of the street or road or carriageway to be so widened unless and until the street or road or carriageway shall have been widened to such extent if any as may be necessary to leave a space of nine feet six inches between the outside of the footpath and the nearest rail of the tramway on the side of the street or road or carriageway on which such widening is to be made or unless the tramways are in such part of the street or road or carriageway shown on the deposited plans as intended to be so constructed that a less space than nine feet six inches will intervene between the outside of the footpath and the nearest rail of the tramway.

Tramways
not to be
made until
streets
widened.

20. The Council may use any generating station erected or to be erected under the authority of the Beckenham Electric Lighting Order 1893 for the supply of current for the working of the tramways and of any tramway in the urban district of Penge and for the other purposes authorised by this Act.

Generating
stations.

21. The tramways shall be constructed on a gauge of four feet eight and a half inches but carriages or trucks adapted to run on railways shall not be run thereon.

Gauge of
tramways.

22. The rails of the tramways shall be such as the Board of Trade may approve.

Rails of
tramways.

23. In addition to the requirements of section 26 of the Tramways Act 1870 the Council shall lay before the Board of Trade a plan showing the proposed mode of constructing laying down

Plan of pro-
posed mode
of construc-
tion.

[Ch. ccxvii.] *Beckenham Urban District Council* [3 Edw. 7.]
Act, 1903.

A.D. 1903. — maintaining and renewing such tramways and a statement of the materials intended to be used therein and the Council shall not commence the construction laying down maintenance and renewal of any of the tramways or part of any of the tramways respectively until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement.

Penalty for
not main-
taining rails
and roads.

24.—(1) The Council shall at all times maintain and keep in good conditon and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Council at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues.

(2) In case it is represented in writing to the Board of Trade by the road authority of any district in which the tramways or any portion thereof are or is situate or by twenty inhabitant ratepayers of such district that the Council have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Council to such penalty or penalties in respect thereof as is or are by this section imposed.

Tramways
to be kept
on level of
surface of
road.

25. If and whenever after the passing of this Act any road authority alters the level of any road along or across which any part of the tramway is laid or authorised to be laid the Council may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Passing places
to be con-
structed where
less than nine
feet six inches
width left
between foot-
way and tram-
way.

26. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Council shall and they are hereby required to construct a passing place or places connecting the one tramway with the other and by the means of such passing place or places

the traffic shall when necessary be diverted from one tramway to the other. A.D. 1903.

27.—(1) The Council may subject to the provisions of this Act with the consent of the Board of Trade make maintain alter and remove such crossovers passing places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the tramways or for providing access to any warehouses stables or carriage-houses or works of the Council.

Power to
make addi-
tional cross-
ings &c.

(2) Notwithstanding anything shown on the deposited plans the Council may with the consent of the Board of Trade lay down double lines in lieu of single lines or single lines in lieu of double lines or interlacing lines in lieu of double or single lines on any of the tramways and if at any time the road in which any tramway or part thereof is authorised to be laid or is laid has been or shall be altered or widened the Council may with the like consent construct such tramway or part thereof or (as the case may be) take up or reconstruct the same in such position as they may think fit.

(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Council shall not less than one month before commencing the works give notice in writing to every owner and occupier of premises abutting on the place where such less space would intervene and such rail shall not be so laid if the owners or occupiers of one-third of such premises by writing under their hands addressed and delivered to the Council within three weeks after receiving the notice from the Council of their intention express their objection thereto.

28. Where by reason of the execution of any work affecting the surface or soil of any road along which any of the tramways is laid it is in the opinion of the Council necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Council may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so removed or discontinued.

Temporary
tramways
may be made
when neces-
sary.

29. For the purpose of constructing any of the tramways the Council may increase the width of the carriageway of any street in

Council may
reduce width
of footway

[Ch. ccxvii.] Beckenham Urban District Council [3 Edw. 7.]
Act, 1903.

A.D. 1903. the district in which a tramway is to be laid by reducing the width of the footway on each or either side of such street. Provided that no footway be so reduced to a less width than six feet:

for constructing tramway.

Provided also that the Council shall not increase the width of the carriageway by reducing the width of the footway of any street or road within the metropolitan borough of Lewisham.

Application of road materials excavated in construction of works.

30. Any paving metalling or material excavated by the Council in the construction of the tramways from any road under the jurisdiction or control of any road authority may be applied by the Council so far as may be necessary in or towards the reinstatement of the road and the maintenance for six months after completion of any of the tramways within the district of such road authority of so much of the roadway on either side of such tramways as the Council are by section 28 of the Tramways Act 1870 required to maintain and the Council shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of the road authority or to such person or persons as he may appoint to receive the same. Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Council and may be dealt with removed and disposed of by them in such manner as they may think fit. Any difference between the Council and any road authority or surveyor or other person with reference to any of the matters aforesaid shall be settled by a referee to be nominated by the Board of Trade on the application of either party.

Junctions with tramways which can be worked in connection with the tramways.

31. The Council may form junctions between the tramways and any tramways which can be worked in connection therewith but only with the consent of the owners and lessees of such tramways and of the local and road authority within whose jurisdiction such junctions would be formed.

For protection of Lambeth Waterworks Company and Crystal Palace District Gas Company.

32. For the protection of the company of proprietors of Lambeth Waterworks and the Crystal Palace District Gas Company (each of whom is in this section referred to as "the Company") the following provisions shall apply and have effect:—

(A) Whenever the construction of the works by this Act authorised necessitates the removal deviation alteration or

support of any pipe or main of the Company the work of removal deviation alteration or support so necessitated shall if they so desire and give notice of such desire to the Council within seven days after receiving notice from the Council pursuant to section 30 of the Tramways Act 1870 be executed by the Company with all due expedition and so as not to unduly delay the construction of the works by this Act authorised and the reasonable expenses of the Company in the execution thereof shall be paid by the Council :

A.D. 1903.

- (b) The foregoing provisions of this section shall be in addition to and not in substitution for or derogation from any other powers rights or privileges whether statutory or otherwise of the Company :
- (c) Any difference which may arise between the Company and the Council with respect to any of the matters referred to in this section shall be settled in manner provided by section 33 of the Tramways Act 1870.

33. For the protection of the mayor aldermen and councillors of the metropolitan borough of Lewisham (in this section called "the borough council") the following provisions shall (subject to the regulations of the Board of Trade) and unless otherwise agreed in writing between the borough council and the Council have effect with respect to such of the tramways as are to be laid upon along or across any street or road within the said borough (that is to say) :—

For protec-
tion of Cor-
poration of
Lewisham.

- (1) The whole space between the rails and for a distance of eighteen inches beyond each external rail and the whole space between the two lines where the tramway is double or where there are passing places shall be paved by the Council to the reasonable satisfaction of the borough council with hard wood paving which shall be laid on a concrete foundation six inches thick composed of six parts of clean Thames ballast and one part of best Portland cement and such paving and foundation shall at all times be kept in good repair by the Council :
- (2) The Council shall as they make and construct the said tramways re-level and re-make to the reasonable satisfaction of the surveyor of the borough council such part of the road as shall be affected interfered with or disturbed by the construction of the said tramways and including where

A.D. 1903.
—

necessary any adjacent portions of the road which are injuriously affected by reason of the rails of the said tramways being laid at a higher or lower level than the existing carriageway :

- (3) The borough council may at the expense of the Council remove any manhole ventilator or other communication with any sewer which is situate wholly or partly under that part of any road which the Council are by section 28 of the Tramways Act 1870 or this Act required to maintain and repair and at the like expense may reconstruct and relay any such manhole ventilator and other communication respectively in other parts of the said road :
- (4) The borough council shall at all times have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent or concurrence of the Council and the provisions contained in sections 32 and 33 of the Tramways Act 1870 shall be applicable in the case of any sewer or private drain of or under the control of the borough council as if the same were a pipe for the supply of gas or water :
- (5) The borough council may cleanse every street and road in which any tramway is laid without reference to the tramways but whatever cleansing owing to snow filth or other matters impeding the traffic is requisite for the proper working the tramways shall be executed by and at the risk of the Council who shall remove the snow filth or other matter from off the road forthwith and not place it on any other part of the road :
- (6) The Council shall within one month of demand pay to the borough council all costs charges and expenses which the borough council may from time to time incur for superintendence of the works during the construction or any alteration of the said tramways or by or in consequence of the exercise of any of the powers or duties conferred upon the borough council by this Act :
- (7) If any difference arise between the borough council and the Council touching the meaning of this section or anything to be done or not to be done thereunder such difference shall be settled unless herein otherwise provided under subsection 4 of section 33 of the Tramways Act 1870.

34. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

A.D. 1903.
 Provisions as to motive power.

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade:
- (2) The Board of Trade shall make regulations (in this Act referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the tramways and for regulating the use of electrical power:
- (3) The Council or any company or person using any mechanical power on the tramways contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof:
- (4) The Board of Trade if they are of opinion
 - (A) That the Council or such company or person have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or
 - (B) That the use of mechanical power as authorised under this Act is a danger to the passengers or the public;
 may by order either direct the Council or such company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Council or such company or person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

35. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages:—

Special provisions as to use of electrical power.

- (1) The Council shall employ either insulated returns or uninsulated metallic returns of low resistance:
- (2) The Council shall take all reasonable precautions in constructing placing and maintaining their electric lines and

A.D. 1903.

circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :

- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Council shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Council either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) When any department of his Majesty's Government represents to the Board of Trade that the use of electrical power under this Act injuriously affects or is likely to injuriously affect any instruments or apparatus whether electrical or not used in any observatory or laboratory belonging to or under the control of that department the Board of Trade after

such inspection or inquiry as they may think proper may by their regulations require the company to use such reasonable and proper precautions including insulated returns as the Board of Trade may deem necessary for the prevention of such injurious affection. For the purposes of this sub-section any inspector of the Board of Trade may during his inspection of the company's works and apparatus be accompanied by any person or persons appointed in that behalf by the government department concerned and the company shall give all due facilities for the inspection. Provided always that in the case of any observatory or laboratory established after the passing of this Act or of any instruments or apparatus hereafter used in any existing observatory or laboratory which may be of greater delicacy than those used therein at the passing of this Act the Board of Trade shall consider to what extent if any it is expedient in the interests of the public that the powers of this subsection should be exercised regard being had to the site of the observatory or laboratory or the purposes of the instruments or apparatus as the case may be :

A.D. 1903.

- (7) If any difference arises between the Council and any other party with respect to anything hereinbefore in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :
- (8) The expression " Council " in this section shall include lessees licencees and any person owning working or running carriages over any tramway of the Council.

36.—(A) Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration ;

For protec-
tion of Post-
master
General.

(B) In the event of the carriages on the tramways being moved by electric power the following provisions shall have effect :—

- (1) The Council shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's

A.D. 1903.

Postmaster General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. If any question arises as to whether the Council have constructed their electric lines or other works or work their undertaking in contravention of this subsection such question shall be determined by arbitration and the Council shall be bound to make any alterations in or additions to their system which may be directed by the arbitrator :

(2) If any telegraphic line of the Postmaster General is injuriously affected by the construction by the Council of their electric lines and works or by the working of the undertaking of the Council the Council shall pay the expenses of all such alterations in the telegraphic lines of the Postmaster General as may be necessary to remedy such injurious affection :

(3)—(a) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster General (other than repairs) the Council or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster General specifying the course of the line and the nature of the work including the gauge of any wire and the Council and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster General for the purpose of preventing any telegraphic line of the Postmaster General from being injuriously affected by the said act or work ;

(b) Any difference which arises between the Postmaster General and the Council or their agents with respect to any requirements so made shall be determined by arbitration :

(4) If any telegraphic line of the Postmaster General situate within one mile of any portion of the works of the Council is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Council's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person

A.D. 1903.

- appointed in writing by him may at all times when electrical energy is being generated by the Council enter any of the Council's works for the purpose of inspecting the Council's plant and the working of the same and the Council shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster General and shall produce for the inspection of the Postmaster General the records kept by the Council pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Council or their agents the Council shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Council or their agents to a fine under this section if they satisfy the Court having cognizance of the case that the immediate doing of the act or execution of the work was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like

A.D. 1903.

manner as if the Council or their agents were a company within the meaning of that Act :

(11) Nothing in this section contained shall be held to deprive the Postmaster General of any existing right to proceed against the Council by indictment action or otherwise in relation to any of the matters aforesaid :

(12) In this section the expression " the Council " includes any person owning working or running carriages on any of the tramways of the Council.

(c) If the Council use electric power as the motive power on any omnibuses run by them under the provisions of the section of this Act of which the marginal note is " Power to use omnibuses " the Council shall (unless such power is entirely contained in and carried along with the omnibuses for moving which it is so used in such manner that no magnetic or other influence is created which is likely to cause injurious affection to a telegraphic line belonging to or used by the Postmaster General) in such user be subject to the provisions of this section.

Apparatus
used for
mechanical
power to be
deemed part
of tramway.

37. The provisions of sections 26 to 33 and section 41 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the road between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Council for the purposes of mechanical power were parts of the tramway.

As to elec-
trical works
&c.

38. The Council may construct lay down erect maintain renew and repair on in under or over the surface of the streets or roads (including footways) in which the tramways by this Act authorised will be situate or in which it may be necessary so to do in order to form connections between such tramways and any generating station and on in under or over any lands belonging to the Council cables electric mains wires conductors posts tubes boxes apparatus and appliances and may make and maintain openings and ways for the purpose of working the tramways by electrical power and may for that purpose subject to the provisions contained in Part II. of the Tramways Act 1870 and to the provisions of this Act open and break up any such street or road and any sewers drains water or gas pipes tubes wires telephonic and telegraphic apparatus therein or thereunder Provided that all posts erected by the Council under the powers of this Act in any street or road (including footways) above the level of the surface thereof shall be of such design and shall be placed in such positions as shall be reasonably approved by the local authority for the district in which such posts are erected.

Nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply. A.D. 1903.
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39. The Council may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of the tramways by mechanical power : Attachment
of brackets
to buildings.

Provided that—

- (1) Where in the opinion of the Council any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable in the circumstances or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :
- (2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Council notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1) :
- (3) The owner may require the Council to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

40. Subject to the provisions of this Act the Board of Trade Byelaws.
may make byelaws with regard to any of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say) :—

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages ;

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For regulating the emission of smoke or steam from engines used on the tramways ;

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety ;

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages ;

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere ;

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

Power to
Council to
work tram-
ways.

41. Notwithstanding anything in the Tramways Act 1870 to the contrary the Council may place and run carriages on and may work and may demand and take tolls and charges in respect of the tramways and in respect of the use of such carriages and may provide such stables buildings carriages trucks harness engines machinery apparatus horses steam cable electric and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the tramways by animal or mechanical power.

Regulations.

42. The regulations authorised by the Tramways Act 1870 to be made by the promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to and worked by the Council be made by the Council alone.

Inspection
by Board of
Trade.

43. The tramways shall not be opened for public traffic until they have been inspected and certified to be fit for such traffic by the Board of Trade.

Period for
completion
of works.

44. The tramways shall be completed within five years from the passing of this Act and on the expiration of that period the powers by this Act granted to the Council for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

45. The Council may demand and take for every passenger travelling upon the tramway or any part or parts thereof including every expense incidental to such conveyance a fare not exceeding one penny per mile and in computing the said fare the fraction of a mile shall be deemed a mile but in no case shall the Council be bound to charge a less sum than one penny.

A.D. 1903.
 Fares for
 passengers.

46. Every passenger travelling upon the tramway may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof all such luggage to be carried by hand and not to occupy any part of a seat nor to be of a form or description to annoy or inconvenience other passengers.

Passengers'
 luggage.

47. The Council shall not carry on the tramways any goods animals or other things other than passengers and passengers' luggage not exceeding the weight in this Act in that behalf mentioned and small parcels.

Council not
 bound to
 carry goods.

48. The Council may demand and take in respect of small parcels conveyed by them on the tramways including every expense incidental to the conveyance any rates or charges not exceeding the following :—

Small
 parcels.

For any parcel not exceeding seven pounds in weight threepence;

For any parcel exceeding seven but not exceeding ten pounds in weight fourpence;

For any parcel exceeding ten pounds and not exceeding fourteen pounds in weight fivepence;

For any parcel exceeding fourteen pounds and not exceeding twenty-one pounds in weight sixpence;

For any parcel exceeding twenty-one and not exceeding twenty-eight pounds in weight sevenpence;

For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight ninepence;

For any parcel exceeding fifty-six pounds in weight such sum as the Council may think fit:

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

49. The Council shall not take or demand on Sunday or any public holiday any higher fares or charges than those levied by them on ordinary week days.

As to fares
 on Sundays
 or holidays.

A.D. 1903.
Cheap fares
for labour-
ing classes.

50.—(1) The Council at all times after the opening of the tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Council in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Council to provide such service as may appear to the Board to be reasonable.

(3) The Council shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

Periodical
revision of
rates and
charges.

51. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by the local authority of any district in which the tramways or such portion are or is wholly or partially situate or by twenty inhabitant ratepayers of that district or by the Council that under the circumstances then existing all or any of the fares or other charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the fares or charges should be revised the said Board may subject to the maximum fares and charges authorised by this Act by order in writing alter modify reduce or increase all or any of the fares or charges to be taken in respect of the tramways or on any portion thereof and thenceforth such order shall be observed until the same is revoked or modified by an order

of the Board of Trade made in pursuance of this section Provided that a copy of this section shall be annexed to every table or list of fares or published or exhibited by the Council. A.D. 1903. —

52. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the Council to make any byelaws sanctioning a higher rate of speed than that authorised by this Act or by the Board of Trade regulations but the byelaws of the Council may restrict the rate of speed to a lower rate than that so authorised. Byelaws by local authority.

53. The heads of agreement as set forth in the Second Schedule to this Act between the Council and the British Electric Traction Company Limited are hereby confirmed and may and shall be carried into effect by the parties thereto Provided that the Council shall not be required to construct Tramway No. 2 by this Act authorised unless and until an arrangement has been made to the satisfaction of the Council and the said company for a through connection between the boundary of the district in Kent House Road and the junction with that road of High Street Sydenham. Confirming heads of agreement with British Electric Traction Company Limited.

54. The Council may subject and without prejudice to the heads of agreement referred to in the last preceding section enter into and carry into effect contracts and arrangements with any local authority company or person owning tramways in any adjacent district which can be worked with any of the Council's tramways with respect to the working use management and maintenance by the contracting parties of all or any of their respective tramways and works or any part or parts thereof respectively the making of all necessary junctions the supply under any agreement for all or any of the respective tramways of the contracting parties being worked by the other of them as aforesaid of rolling stock plant machinery and electrical energy or power necessary for the purposes and during the continuance of such agreement the appointment and removal of officers and servants the payments to be made and the conditions to be performed in respect of such working use management and maintenance the interchange accommodation conveyance transmission and delivery of traffic coming from or destined for the respective undertakings of the contracting parties and the division and the apportionment of the revenue arising from such traffic and the payment of any fixed or contingent rent Provided that the Council shall not supply electrical energy for the Agreements for working &c.

[Ch. ccxvii.] *Beckenham Urban District Council* [3 Edw. 7]
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A.D. 1903. — working of any tramways beyond their district other than Tramway No. 3 and any tramways in the urban district of Penge.

Supply of
electrical
energy in
Penge.

55. The Council and the district council for the urban district of Penge or any company for the time being authorised to supply energy in such district may with the approval of the Board of Trade and subject to the provisions of the respective Acts or Orders under which such district council or company are or may be empowered to supply electrical energy enter into and carry into effect agreements for the supply of electrical energy in bulk by the Council to such district council or company.

Temporary
stoppage of
streets.

56. The Council may during the execution and for the purposes of any work by this Act authorised stop up any street in the district and prevent all persons other than those bonâ fide going to or returning from any house in any such street from passing along and using the same for any reasonable time The Council shall provide reasonable access for all persons so bonâ fide going to or returning from any such house.

Power to use
omnibuses.

57. The Council may provide and maintain and may work run or use omnibuses moved by animal or mechanical power in connection with the tramways along the routes of intended tramways during the construction or reconstruction of any of the tramways and they may levy and take such tolls rates or charges for the use of such omnibuses as they may think reasonable :

Provided always that the Council shall not use electrical energy as the motive power on such omnibuses unless the electrical energy is entirely contained in and carried along with the omnibuses.

Power to
acquire pa-
tent rights.

58. For the purpose of using mechanical power it shall be lawful for the Council to acquire hold and exercise patent and other rights or licences (not being exclusive) relating to motive power or otherwise.

Orders &c.
of Board of
Trade.

59. All orders regulations and byelaws made by the Board of Trade under the authority of this Act shall be signed by a secretary or an assistant secretary of the Board.

Penalty for
malicious
damage.

60. If any person wilfully does or causes to be done with respect to any apparatus used for or in connection with the working of any tramway of the Council anything which is calculated to obstruct or interfere with the working of such tramway or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every

person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any tramway of the Council shall be liable to a penalty not exceeding twenty pounds. A.D. 1903.

61. Every person who wilfully obstructs any person acting under the authority of the Council in setting out the lines of the works authorised by this Act or who pulls up or removes any poles or stakes driven into the ground for the purpose of setting out the lines of such works or defaces or destroys such works or any part thereof shall without prejudice to any other proceeding or penalty for every such offence be liable to a penalty not exceeding five pounds to be recovered summarily. Penalty for obstructing works.

62. Nothing in this Act contained shall exempt the Council or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of rates or charges authorised by this Act. Provision as to general Tramway Acts.

63. In constructing reconstructing altering and maintaining any of the tramways by this Act authorised in any road where the same are intended to pass under or over any bridge of the South Eastern Railway or the London Chatham and Dover Railway respectively or in laying down or altering any wire cable or apparatus in any such road the following provisions for the protection of the South Eastern Railway Company the London Chatham and Dover Railway Company and the South Eastern and Chatham Railway Companies' Managing Committee (hereinafter respectively referred to as "the railway company") shall apply and have effect (that is to say):— For protection of South Eastern and London Chatham and Dover Railway Companies in respect of tramways.

- (1) If the railway company hereafter requires to widen lengthen strengthen reconstruct alter or repair any bridge upon or under which the tramway is laid or the approaches thereto or to widen or alter any railway thereunder or to lift or support any such bridge the Council shall afford to the railway company all reasonable and proper facilities for the purpose and if the railway company finds it necessary for such purpose that the working or user of any part of the tramway upon or under such bridge or approaches be wholly or in part stopped or delayed or that such part of the tramway be wholly or in part taken up or removed and if the railway company accordingly gives to the Council seven days' notice in writing (or in case of

A.D. 1903.

- emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal then the working or user of such part of the tramway shall be stopped or delayed or such part of the tramway shall be taken up or removed as stated in such notice at the reasonable expense of the Council and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be necessary for effecting such purpose as aforesaid and such part of the tramway shall be restored with all possible despatch and in such case the railway company shall not be liable to pay compensation in respect of such stoppage delay or taking up or removal as aforesaid :
- (2) The Council shall execute all works affecting any bridges of the railway company in such a manner as to alter or interfere as little as possible with the structure of such bridges or with the approaches thereto so far as they belong to the railway company and they shall so maintain and use the tramway and apparatus as to interfere as little as possible with the structure of such bridges or approaches :
- (3) Any interference with or alteration of the structure of any bridges of the railway company shall only be executed by the Council according to plans and sections to be previously submitted to and reasonably approved by the engineer of the railway company and all works affecting any such bridges shall be carried out under the superintendence and to the reasonable satisfaction of the said engineer Provided that unless the said engineer by notice in writing to the Council within twenty-one days after the submission of such plans and sections give notice in writing to the Council objecting thereto or making any requirement with respect thereto the said plans and sections shall be deemed to have been approved on behalf of the railway company and the work may be proceeded with accordingly :
- (4) In the event of any injury being caused to any bridges or approaches of the railway company by the construction maintenance or user of any works under the powers of this Part of this Act the railway company may at the expense of the Council restore such bridges and approaches or the part or parts thereof which may be so injured to as good a state and condition as they were in before such injury was occasioned and the Council shall indemnify

the railway company against all expenses to which they may be put in repairing so much of such bridges or the roads over and the approaches thereto as the railway company are liable to maintain and repair and the railway company may recover from the Council the amount of of such expenses :

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—

- (5) In case it shall become necessary in consequence of the construction maintenance or user of any works under the powers of this Part of this Act to underpin or otherwise strengthen the structure of any bridges of the railway company the railway company may after giving to the Council fourteen clear days' notice thereof execute such works as may be necessary to underpin or strengthen such bridges and the costs and expenses of and incidental thereto shall be repaid by the Council to the railway company :
- (6) If it becomes necessary having regard to the relative positions of the works of the Council and the works of the railway company that the electric telegraphic telephonic or signal wires and apparatus connected with the railway should be placed in cable or otherwise altered the railway company may execute any works reasonably necessary for such cabling or alterations and the expense of executing such works shall be borne by the Council :
- (7) The Council shall be responsible for and make good to the railway company all losses damages and expenses which may be occasioned to them by or by reason of the execution or failure of any works under the powers of this Part of this Act or by reason of any act default or omission of the Council or of any person in their employment or of any contractors for any such works or any part thereof Provided that nothing in this subsection shall confer upon the railway company any right or power in respect to the use of electrical power beyond that to which they may be entitled under the section of this Act of which the marginal note is "Special provisions as to use of electrical power" :
- (8) The portion of Tramway No. 1 by this Act authorised which will be situate in front of the station buildings of the Clock House Station of the railway company shall be laid so as to leave a clear space of not less than nine feet six inches between the kerb of the footpath adjoining such station buildings and the nearest rail of the tramway and

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no tramcar or other vehicle or carriage used on the tramway shall without the consent of the railway company be stopped or permitted to be stopped in front of the said buildings except for and only for so long as shall be absolutely necessary for the purpose of taking up and setting down passengers :

- (9) In the event of any of the tramways being worked by electricity on the overhead system no brackets wires or other apparatus shall without the previous consent in writing of the railway company under their common seal (which consent is not to be unreasonably withheld) be attached to any bridge or other work belonging to them :
- (10) If any difference shall arise under this section between the Council and the railway company as to anything to be done or not to be done under the provisions of this section or as to the reasonableness of any requirements or of any charges under this section the matter in difference shall unless otherwise agreed be determined by a referee in accordance with the provisions of section 33 of the Tramways Act 1870.

PART IV.

RECREATION GROUNDS.

Pleasure
grounds to
be deemed
streets.

64. The public parks gardens and pleasure grounds within the district shall be deemed streets for the purposes of sections 24 25 and 29 of the Town Police Clauses Act 1847 and also for the purposes of so much of section 28 of that Act as imposes penalties upon persons committing the following offences :—

Every person who slaughters or dresses any cattle or any part thereof except in the case of cattle overdriven which may have met with accident and which for the public safety or other reasonable cause ought to be slaughtered on the spot ;

Every common prostitute or night walker loitering and importuning passengers for the purpose of prostitution ;

Every person who wilfully and indecently exposes his person ;

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language ;

Every person who wantonly discharges any firearm or A.D. 1903.
discharges any missile or makes any bonfire ;

Every person who throws or lays any dirt litter ashes or night
soil or any carrion fish offal or rubbish on any street.

65. The Council may set apart any portion of any park Power to set
apart and
close plea-
sure grounds
for games.
garden or pleasure ground for the time being belonging to or held
by them for cricket bowls football tennis and other games and for
the drill of volunteers ycomauy or cadets or of any military or
police force or for the purposes of the delivery of speeches or the
holding of meetings of public or local interest and may make an
agreement with any club or association by which such portion
may be secured to the club or association but so that the same
shall be open to the public when not in use for such games or
drill or other purposes and the Council may make byelaws for
regulating the use of the portions of the park garden or pleasure
ground so set apart.

66. The Council may erect maintain furnish and equip and Power to
erect reading
refreshment
rooms &c.
may remove pavilions conservatories waiting refreshment concert
assembly or reading rooms museums baths band stands and other
buildings and conveniences in any park or garden or pleasure
ground belonging to or held by them which may be required or
convenient for such ground park or garden or pleasure ground or
the public resorting thereto and may charge for admission thereto :

Provided that the Council shall not charge for admission to
such reading rooms on more than twelve days in any one year nor
on more than four consecutive days on any one occasion.

67. The Council may let any refreshment rooms with their Power to let
refreshment
rooms &c.
appurtenances belonging to them or under their control to any
such person for such term not exceeding three years at any one
time at such rent payable at such times under such covenants and
on such conditions and with under and subject to such rights
powers privileges and authorities relating thereto respectively as
the Council may think fit.

68. The Council may pay or contribute towards the payment Power to
contribute
towards
band.
of a public band of music for the district provided that the amount
of such payments or contributions do not in any year exceed a sum
equal to a rate of one farthing in the pound on the assessable value
of the district for the purposes of the general district rate The
Council may in any park garden or pleasure ground or other
place enclose an area within which such band shall play and make

[Ch. ccxvii.] Beckenham Urban District Council [3 Edw. 7.]
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A.D. 1903. — regulations as to the time and place for the playing of the band the payments to be made for admission within the said enclosure and for securing good and orderly conduct during the playing of the band.

Power to provide apparatus for games. **69.** The Council may provide apparatus for games and recreation for the use of the public frequenting the public parks gardens and pleasure grounds and may charge for the use thereof and they may lease or grant for any term not exceeding three years the right of providing and charging for such apparatus upon such terms and conditions as they think proper and the Council may make regulations with respect to the use and payment for the use of such apparatus.

Application of moneys received for admission. **70.** The moneys (if any) received for the admission of any person to the park garden enclosure or pleasure ground or any reading room assembly room or enclosure therein or from the letting of any refreshment rooms or other buildings or for the use of chairs or any apparatus as in this Part of this Act mentioned shall be carried to the district fund.

PART V.

INFECTIOUS DISEASE.

Protection against infection of books from lending library. **71.** No person shall return to any public or lending library any book which has been to his knowledge exposed to infection from any infectious disease but shall at once give notice thereof to the inspector of nuisances whose duty it shall be to cause the same to be disinfected and then returned to the librarian or proprietor Any person who shall offend against this enactment shall be liable to a penalty not exceeding forty shillings.

Dairymen to notify infectious disease among their servants. **72.** Every dairyman supplying milk within the district from premises whether within or beyond the district shall notify to the Council or to the medical officer all cases of infectious disease among persons engaged in or in connection with his dairy as soon as he becomes aware or has reason to suspect that such infectious disease exists and any dairyman who makes default in so doing shall be liable to a penalty not exceeding forty shillings.

Medical officer may require dairymen to furnish list of sources of **73.** If the medical officer certifies to the Council that any person in the district is suffering from infectious disease which he has reason to suspect is attributable to milk supplied within the district the Council may by notice in writing require every person

[3 EDW. 7.] *Beckenham Urban District Council* [Ch. ccxvii.]
Act, 1903.

supplying milk to the person so suffering or to the house of which he is an inmate to furnish him with a list of all the farms dairies or places from which such person derives his supply of milk or from which he has derived his supply during the last six weeks and a list of the persons to which he has within such six weeks supplied milk within the district and the Council shall pay to him for such list the sum of sixpence and after the rate of sixpence for every twenty-five names contained therein and every such person failing to comply with such request shall for each such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

A.D. 1903.

their supply
of milk and
of persons
supplied.

74. If any dairyman shall at the request of the Council stop his milk supply within the district on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons residing within the district the Council may make compensation to him for any loss occasioned by such stoppage and any such compensation may be paid out of the district fund or general district rate.

Compensa-
tion to dairy-
men.

75. No person suffering from an infectious disease shall milk any animal the milk of which is intended for consumption within the district or pick fruit intended for consumption within the district or engage in any trade or business connected with food intended for consumption within the district or carry on any trade or business in such a manner as to be likely to spread infectious disease within the district and if he does he shall be liable to a penalty not exceeding twenty shillings.

Prohibition
on infected
person carry-
ing on
business.

76. If any person shall at the request of the Council or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease within the district the Council shall make compensation to him for any loss he may sustain by reason of such stoppage.

Power to
compensate
persons
ceasing em-
ployment.

77. Where a person not being a pauper is received as a patient into any hospital for infectious disease the Council may if they think fit themselves pay the whole or any part of the expenses arising out of the reception and maintenance of such person.

Council may
pay expenses
of person in
hospital.

78. The Council may if they think fit provide or contract with any other person or hospital authority to provide nurses for attendance upon any person suffering from infectious disease within the district and may charge a reasonable sum for the service of any nurse so provided.

Power to
provide
nurses.

A.D. 1903.
Driver &c.
of infected
person to
give notice.

79. If any person suffering from any infectious disease is conveyed in any public vehicle the owner or driver thereof as soon as it comes to his knowledge shall give notice to the medical officer and shall cause such vehicle to be disinfected and if he fails so to do he shall be liable to a fine not exceeding five pounds and the owner or driver of such vehicle shall be entitled to recover in a summary manner from the person so conveyed by him or from the person causing that person to be so conveyed a sum sufficient to cover any loss and expense incurred by him in connection with such disinfection. It shall be the duty of the Council when so requested by the owner or driver of such public vehicle to provide for the disinfection of the same free of charge except in cases where the owner or driver conveyed such person knowing that he was so suffering.

Cleansing of
infected
house and re-
moval of per-
sons from in-
fected house

80.—(1) Where it appears to the Council upon the certificate of the medical officer that the cleansing and disinfecting of any house or part thereof and of any articles therein likely to retain infection or the destruction of such articles would tend to prevent or check any infectious disease the Council may serve notice on the occupier or where the house or part thereof is unoccupied on the owner of such house or part thereof that the same and any such articles therein will be cleansed and disinfected or (as regards the articles) destroyed by the Council unless the person so notified informs the Council within a time to be specified in the notice from the receipt of the said notice that he will cleanse or disinfect the house or part thereof with any such articles or destroy such articles to the satisfaction of the medical officer as testified by certificate by him within a time fixed in the notice.

(2) If either—

- (A) Within the time specified as aforesaid from the receipt of the notice the person on whom the notice is served does not inform the Council as aforesaid; or
- (B) Having so informed the Council he fails to have the house or part thereof and any such articles disinfected or such articles destroyed as aforesaid within the time fixed in the notice; or
- (c) The occupier or owner as the case may be without such notice gives his consent;

the house or part thereof and the articles shall be cleansed and disinfected or such articles destroyed by the officers of and at the cost of the Council.

(3) For the purpose of carrying into effect this section the Council may enter on any premises between nine o'clock in the morning and six o'clock in the evening. A.D. 1903.

(4) When the Council have disinfected any house part of a house or any article under the provisions of this section they shall compensate the occupier or owner of such house or part of a house or the owner of such article for any unnecessary damage thereby caused to such house part of a house or article and when the Council destroy any article under this section they shall reasonably compensate the owner thereof and the amount of any such compensation shall be recoverable in a summary manner.

(5) If the Council deem it necessary to remove from any house or part thereof all or any of the residents not being themselves sick on account of the existence or recent existence therein of infectious disease or for the purpose of disinfecting such house or part thereof they may make application to a justice and the justice if satisfied of the necessity of such removal may grant a warrant authorising the Council to remove such residents and imposing such conditions as to time and otherwise as to him may seem fit. Provided always that no such warrant shall be necessary when the removal is carried out with the consent of any such resident or his parent or guardian. The Council shall and they are hereby empowered to provide free of charge temporary shelter with any necessary attendants for such persons while prevented from returning to such house or part thereof.

(6) For the purpose of this section the word "house" includes any tent or van.

(7) The Council may for the purposes of this section—

Themselves build a place of reception for affording temporary shelter ;

Contract for the use of any such place of reception.

Any expenses incurred by the Council under this section shall be paid out of the district fund and general district rate.

81. Any person taking or sending to any public wash-house or to any person for the purpose of being washed or mangled any bedding clothing or other things which to his knowledge have been exposed to infection from infectious disease shall previously to so taking or sending the same cause such bedding clothing or other things to be disinfected by the Council or to the satisfaction of the medical officer and in default shall be liable to a penalty not

Disinfection
of clothes.

A.D. 1903. — exceeding forty shillings and the Council shall make provision for disinfecting and shall on application disinfect at their expense such bedding clothing and other things.

Unwhole-
some articles
to be
purified.

82. Where on the certificate of the medical officer it appears to the Council that any articles in any house or part thereof are in such a filthy and dangerous or unwholesome condition that health is affected or endangered thereby or that the cleansing or purifying or destroying of any such articles is requisite to prevent risk of or to check infectious disease the Council may cause any such articles in any such house or part thereof to be at their own expense cleansed or purified or they may destroy the same and the Council shall reasonably compensate the owner for any articles so destroyed.

Laundresses
to supply list
of customers.

83. Whenever it shall be certified to the Council by the medical officer that it is desirable with a view to prevent the spread of infectious disease that they should be furnished with a list of the customers of any person earning a livelihood or deriving gain by the washing or mangling of clothes the Council may require such person to furnish to them a full and complete list of the names and addresses of the owners of clothes for whom such person washes or mangles or has washed or mangled during the past six weeks and such person shall furnish such list accordingly and the Council shall pay to him for every such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein and any person who shall wilfully or knowingly offend against this enactment shall for each such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Penalty on
guardian
permitting
infected
child to at-
tend school.

84. No person being the parent or having care or charge of a child who is or has been suffering from infectious disease shall after a notice from the medical officer that the child is not to be sent to school permit such child to attend school without having procured from the medical officer a certificate (which shall be granted free of charge upon application) that in his opinion such child may attend without undue risk of communicating such disease to others. If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

Power to me-
dical officer
to examine
school
children.

85. The medical officer may enter any public elementary school within the district at all reasonable times and examine the scholars attending the same and may exclude from attendance thereat for such period as he shall consider requisite any scholar

who in his opinion is suffering from infectious disease or is likely to spread infection. A.D. 1903.

The medical officer shall upon the exclusion of any scholar in manner aforesaid give notice thereof in writing to the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends and shall send a copy of such notice to the parent or guardian of the scholar.

Any person who shall obstruct the medical officer in carrying into effect the provisions of this section or who shall permit any scholar to attend school after he shall have been excluded as aforesaid and before the expiration of the period of exclusion shall be liable to a penalty not exceeding forty shillings.

86. Whenever any scholar who attends any school within the district shall be suffering from any infectious disease the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends shall forthwith on becoming aware of the fact send notice thereof to the medical officer and shall furnish to the Council at their request a list of the pupils attending thereat together with their addresses and in default thereof shall be liable to a penalty not exceeding forty shillings. The Council shall pay to the person furnishing any such list as aforesaid for such list the sum of sixpence and at the rate of sixpence for every twenty-five pupils named therein and every person who shall knowingly or wilfully offend against this enactment shall be liable for each such offence to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Principal of school to furnish list of pupils in certain cases.

87. Whenever it shall be certified to the Council by the medical officer that it is desirable with a view to prevent the spread of infectious disease that any Sunday school within the district should be closed or that the children from any particular district should be excluded from such school the Council may make an order for the closing of such school or the exclusion of such children for a specified time and any teacher or person in charge of a Sunday school who shall open such school or permit such children to attend during the time specified in the order shall be liable to a penalty not exceeding forty shillings.

Power to close Sunday schools in certain cases.

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For regulat-
ing manu-
facture and
sale of ice
creams &c.

88. Any person being a manufacturer or vendor of or merchant or dealer in ice creams or other similar commodity who within the district—

- (A) causes or permits ice creams or any similar commodity to be manufactured sold or stored in any cellar or room in which there is an inlet or opening to a drain; or
- (B) in the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or
- (C) omits on the outbreak of any infectious disease amongst the persons employed in his business to give immediate notice thereof to the medical officer;

shall be liable for every such offence on summary conviction to a penalty not exceeding forty shillings.

Notice of
provisions of
Part V. of
Act.

89. The Council shall cause public notice to be given of the effect of the provisions of this Part of this Act by advertisement in local newspapers and by handbills or otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Council may fix.

PART VI.

TUBERCULOSIS.

Penalty for
selling milk
of diseased
cows.

90. Every person who knowingly sells or suffers to be sold or used for human consumption within the district the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds.

Penalty on
failing to
isolate di-
seased cows.

91. Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the district who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds.

Obligation to
notify cases
of tuber-
culosis.

92. Every dairyman who supplies milk within the district and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written

notice of the fact to the medical officer stating his name and address and the situation of the dairy or premises where the cow is. A.D. 1903.

Any dairyman failing to give such notice as required by this section shall be liable to a penalty not exceeding forty shillings.

93.—(A) It shall be lawful for the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer to take within the district for examination samples of milk produced or sold or intended for sale within the district. Power to take samples of milk.

(B) The like powers in all respects may be exercised outside the district by the medical officer or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the taking of samples of the milk which order any such justice is hereby empowered to make.

94.—(A) If milk from a dairy situate within the district is being sold or suffered to be sold or used within the district the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any particular teat shall if he so requires be kept separate and separate samples thereof be furnished. Power to inspect cows and to take samples of milk.

(B) If the medical officer is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the district from consumption of the milk supplied from a dairy situate within the district or from any cow kept therein he shall report thereon to the Council and his report shall be accompanied by any report furnished to him by the veterinary surgeon and the Council may thereupon serve on the dairyman notice to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the district until the order has been withdrawn by the Council.

(C) If the medical officer has reason to believe that milk from any dairy situate outside the district from which milk is being sold or suffered to be sold or used within the district is likely to cause

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Act, 1903.

A.D. 1903. — tuberculosis in persons residing within the district the powers conferred by this section may in all respects be exercised in the case of such dairy. Provided that the medical officer or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make.

(D) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer person or veterinary surgeon for all or any of the purposes of this section and any person refusing such assistance or obstructing such medical officer person or veterinary surgeon in carrying out the purposes of this section shall be liable to a penalty not exceeding five pounds.

(E) If in their opinion the dairyman fails to show cause why such an order should not be made as aforesaid the Council may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the district on the council of the borough or district in which it is situate.

(F) The said order shall be forthwith withdrawn on the Council or their medical officer being satisfied that the milk supply has been changed or that it is not likely to cause tuberculosis to persons residing in the district.

(G) If any person after any such order has been made supplies any milk within the district in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a daily penalty not exceeding forty shillings.

(H) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this section.

Appeal.

95. The dairyman may appeal against an order of the Council made under the last preceding section or the refusal of the Council to withdraw any such order either to a petty sessional court having jurisdiction within the district or at his option if the dairy is situate outside the district to the Board of Agriculture who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the district and give notice thereof to the dairyman and the clerk not less than forty-eight hours before the

hearing Such officer shall for the purposes of the appeal have all the powers of a petty sessional court. A.D. 1903.

The Board of Agriculture may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board of Agriculture in the matter of the appeal.

The court or the Board of Agriculture as the case may be may confirm vary or withdraw the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Council.

96. If an order is made without due cause or if the Council unreasonably refuse to withdraw the order the dairyman shall if not himself in default be entitled to recover from the Council full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Council to withdraw the order. Compensation to dairy-men.

The court or the Board of Agriculture may determine and state whether an order the subject of appeal has been made without due cause and whether the Council have unreasonably refused to withdraw the order and whether the dairyman has been in default.

Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default where any such fact has not been determined by the court or Board of Agriculture or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid.

97. The Council shall cause to be given public notice of the effect of the provisions of this Part of this Act by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Council may fix. Notice of provisions of Part VI. of Act.

98. Offences under this Part of this Act may be prosecuted and penalties may be recovered by the Council before a petty

A.D. 1903. sessional court having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise.

Expenses. **99.** All expenses incurred by the Council in carrying into execution the provisions of this Part of this Act shall be chargeable upon the district fund and general district rate and the Council may also charge upon the same rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the district. Provided that no such test shall be applied except with the previous consent of the owner of such cow.

Execution of this Part of Act by committee. **100.** This Part of this Act may be carried into execution by a committee of the Council formed in accordance with and subject to the provisions of the Fourth Schedule to the Diseases of Animals Act 1894 except that the committee shall consist wholly of members of the Council.

PART VII.

STREETS BUILDINGS AND SEWERS.

As to plans deposited with Council. **101.** The Council may retain any drawings plans elevations sections specifications and written particulars descriptions or details deposited with them in pursuance of any enactment for the time being in force or any byelaw thereunder.

Approval of plan to be void after certain intervals. **102.** The approval by the Council of any plan or section of any street or building and the notice of intention to lay out or construct such street or building shall be null and void if the execution of the work specified in such plan or section be not commenced within the following periods (that is to say):—

As to plans or sections approved after the passing of this Act within two years from the date of such approval;

As to plans or sections approved before the passing of this Act within two years from the passing of this Act:

And at the expiration of those respective periods fresh notice and deposit and approval shall unless the Council otherwise determine be requisite.

The Council shall give notice of the provisions of this section to every person intending to lay out a new street or erect a new building the plans for which shall have been approved before the passing of this Act, but the laying out of which street or erection

of which building shall not have been commenced and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act. A.D. 1903. —

103.—(1) Where any street or road in the district repairable by the inhabitants at large is in the opinion of the Council narrow or inconvenient or without any sufficiently regular line of frontage the Council may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road. The line which in any case the Council propose to prescribe and define shall be distinctly marked and shown on a plan to be signed by and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Council formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner interested whose name and address they can ascertain. No new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street or road than such line. Council may define future line of existing streets.

(2) The Council may and if required so to do by the owner shall purchase the land lying between the existing building line of the street or road and such line as aforesaid and the same when purchased shall vest in the Council as part of the street or road.

(3) Whenever in any of the above cases the Council shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Council shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land full compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Council requiring the said line to be observed and kept.

(4) In estimating the amount of compensation or purchase money to be paid by the Council under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said compensation or purchase money.

(5) If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section

A.D. 1903. he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Power to
vary position
or direction
of new
streets.

104. When the plans of any new street are submitted to the Council for approval the Council may vary or alter the position direction or level of any intended new street for the purpose of causing it to communicate in a direct or more direct line with any other street adjoining or leading thereto The Council shall make compensation to any person who may be injuriously affected by the exercise of the powers conferred by this section.

Council may
declare
where
streets begin
and end.

105. The Council may by resolution declare the point or limits at or within which any street is to be taken as beginning or ending.

Continuation
of existing
streets to be
deemed new
streets.

106. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any byelaws made thereunder and for the time being in force within the district be deemed to be a new street.

As to urgent
repairs to
private
streets.

107. In cases where urgent repairs are required to any street not being a highway repairable by the inhabitants at large and where for want of such repairs danger exists to passengers or vehicles in such street the Council may give notice in writing to the owners of the premises fronting adjoining or abutting on such parts thereof as may require such repairs requiring them to execute within a time to be specified in such notice such repairs in and upon such street as shall be specified in such notice and if such notice is not complied with the Council may if they think fit execute such repairs and the expenses thereof shall be recoverable summarily by the Council from the owners in default.

Forecourts
to be fenced
off from
streets.

108. Whenever the person erecting any building shall be desirous of leaving an opening or of placing any steps or other projection in any forecourt area or space left in front of such building such forecourt area or space shall if required in writing under the hand of the clerk be well and sufficiently fenced off from the footpath or street by a railing parapet or dwarf wall or otherwise to the satisfaction of the Council and any person who shall offend against this enactment shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

109. It shall not be lawful for any person without the consent of the Council in writing first obtained to lay any building materials rubbish or other thing or make any excavation on or in any street and when with such consent any person lays any building materials rubbish or other thing or makes any excavation on or in any street he shall at his own expense cause the same to be sufficiently fenced and a sufficient light to be fixed in a proper place on or near the same and to be continued every night from sunset to sunrise and shall remove such material rubbish or thing or fill up such excavation (as the case may be) when required by the Council and if any person fails to comply in any respect with the requirements of this enactment he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council may remove any such materials rubbish or thing or fill up such excavation (as the case may be) and recover the expenses from the offender summarily.

A.D. 1903.

Deposit of building materials or excavations not to be made in street without consent.

110. The Council may (if in the circumstances of the case they think it expedient so to do) make it a condition of approving the plans of any new street that such street shall be so laid out and formed that the same shall not terminate with a dead end or cul-de-sac and in any such case the street shall not be laid out and formed except in accordance with such condition unless the person laying out the street can show that it is impossible for him to comply therewith and any person who shall offend against this enactment shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

Provision for preventing formation of culs-de-sacs.

111. The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon or adjoining any private street communicating with any public street shall so fence off channel or embank their lands as to prevent the soil and sand of such lands from falling upon or being washed or carried into any public street sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully and any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings For the purpose of this section "public street" means a street repairable by the inhabitants at large and "private street" means a street not so repairable:

For preventing soil and sand from being washed into streets.

Provided that this section shall not apply to any lands of an agricultural character.

A.D. 1903. **112.** If any vacant land (other than land now forming part of any common) adjoining any street be allowed to remain unfenced or the fences thereof are allowed to be or remain out of repair and such land is in the opinion of the Council owing to the absence or inadequate repair of such fence a source of danger to passengers or is used for any immoral or indecent purpose or for any purpose causing inconvenience or annoyance to the public then after the expiration of fourteen days' notice from the clerk to the owner or occupier of the same or without any notice if the Council are unable after diligent inquiry to discover the name or place of abode of such owner or occupier the Council may cause the same to be fenced or may cause the fences to be repaired in such manner as they shall think fit and the expenses thereby incurred shall be recoverable from such owner or occupier summarily as a civil debt.

Dangerous places to be repaired or enclosed. **113.** With respect to the repairing or enclosing of dangerous places the following provisions shall have effect (namely):—

- (1) If any building wall fence steps structure or other thing or any well excavation reservoir pond stream dam or bank is for want of sufficient repair protection or enclosure dangerous to the passengers along any street or footpath the Council may order the owner within the period specified in such order to repair remove protect or enclose the same so as to prevent any danger therefrom :
- (2) If after service of the order on the owner he shall neglect to comply with the requirements thereof within the prescribed period the Council may cause such works as they think proper to be done for effecting such repair removal protection or enclosure and the expenses thereof shall be payable by the owner and may be recovered summarily.

Crossings for horses or vehicles over footways. **114.** Every person desirous of forming a communication for horses or vehicles across any kerbed footpath so as to afford access to any premises from a street repairable by the inhabitants at large shall first give notice in writing of such desire to the Council and shall if so required by them submit to them for their approval a plan of the proposed communication showing where it will cut the footpath and what provision (if any) is made for kerbing for gullies and for a paved crossing and the dimensions and gradients of necessary works and shall execute the works at his own expense under the supervision and to the satisfaction of the surveyor and in case such plan shall have been required then in accordance with the plan so approved and not otherwise If any person drives or

permits or causes to be driven any horse or vehicle across any footway unless and until such a communication as aforesaid has been so made or on or along any part of any such footway other than the part over which such communication has been made he shall for each offence be liable to a penalty not exceeding forty shillings in addition to the amount of damage (if any) thereby done to such footway.

A.D. 1903.
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115. If the footway of any street belonging to or under the management of the Council be injured by or in consequence of any excavations or other works on lands adjoining thereto the Council may repair or replace the footway injured and all damages and expenses of or arising from such injury and repair or replacement shall be paid to the Council by the owner of the lands on which such excavations or other works have been made or by the person causing or responsible for the injury.

Recovery of
damages
caused to
footways by
excavations.

116. Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Council may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub so as to prevent such obstruction or interference and in default of compliance the Council may themselves carry out the requisition of their notice doing no unnecessary damage.

Trees or
shrubs over-
hanging
streets and
footpaths.

117. All buildings or parts of buildings which may in future be erected on the site of any building or any land which site or land in consequence of any improvement made by the Council becomes front land shall be erected according to such elevation as the Council approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes any door or entrance opening upon or communicating with the street or any wall or fence by the side of the street every such owner lessee or occupier shall make the building wall or fence in a line and the elevation thereof fronting to or towards the street in accordance with a plan approved by the Council and in case the Council for the space of one month after any plan of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof Any person who shall offend against this section shall be liable to a penalty not

Elevation of
buildings
erected on
front lands
to be subject
to approval
of Council.

A.D. 1903. — exceeding five pounds and to a daily penalty not exceeding forty shillings. The Council shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence.

Height of buildings.

118. No new building shall without the approval of the Council be erected on the side of any street which shall exceed in height the distance from the front of such building to the opposite side of such street nor shall the height of any building at any time erected on the side of any street be at any time subsequently increased without such approval as aforesaid so as to exceed such distance. Provided that the approval of the Council shall not in the case of rebuilding any building existing at the passing of this Act be withheld so as to involve a material sacrifice of property. In determining the height of any building the measurement shall be taken from the level of the centre of the street immediately opposite the centre of the front of the building up to the top of the parapet or to the eaves of the roof as the case may be. In case of a gable facing the street the measurement shall be to a point half way between the level of the eaves and the ridge. In case of a roof which slopes away from the street at any greater angle to the horizon than fifty degrees the measurement shall be to the ridge of the roof and not to the eaves.

Height of chimneys.

119. With respect to the height of chimneys the following provision shall have effect (that is to say):—

(1) Every chimney hereafter erected for carrying smoke or steam or for the conveying away of any noisome or deleterious gases or effluvia from any mill factory brewery sizing-house dye-house corn-mill foundry or building used for manufacturing or other purposes shall be raised to such height measured from the level of the centre of the street nearest thereto as the Council shall reasonably approve having regard to the use of such chimney the position of dwelling-houses or other buildings near thereto the description of such building the levels of the neighbouring ground and any other condition requisite for consideration in determining such height:

(2) Any person who shall offend against any provision of this or the preceding section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

120. From and after the passing of this Act—

A.D. 1903.

The conversion into a dwelling-house of any building or part of a building not originally constructed for human habitation ;

What to be deemed new buildings.

The conversion of a building which when originally erected was legally exempt from the operation of any building byelaws in force within the district into a building which had it been originally erected in its converted form would have been within the operation of those byelaws ;

The re-conversion into a dwelling-house of any building which has been discontinued as or appropriated for any purpose other than that of a dwelling-house ;

The making of any addition to any existing building by raising any part of the roof or making any projection therefrom but so far as regards such addition only ; and

The roofing or covering over of any open space between walls or buildings ;

shall for all the purposes of this Act and of the Public Health Acts and of any byelaw made thereunder respectively be deemed to be the erection of a new building.

121. If any yard or open space in connection with any dwelling-house erected before the passing of this Act shall not be so formed flagged asphalted or paved as to allow of the surface water being carried off to the drains the Council may give to the owner of such house notice in writing requiring him within fourteen days after such notice shall have been so given to proceed to form and to flag asphalt or pave such yard or open space for at least one hundred and fifty square feet immediately adjoining such house or for the whole extent of such yard or open space if the same be less than one hundred and fifty square feet in area so as to allow of the surface water being carried off to the drains and within twenty-eight days after such notice shall have been so given to complete such several works to the satisfaction of the Council and if such owner shall make default in complying with any of such requirements to the satisfaction of the Council within the respective times aforesaid the Council may if they think fit execute the works necessary for carrying out such requirements and the expenses incurred by them in so doing shall be paid to the Council by such owner and may be recovered summarily as a civil debt.

Yards to be paved.

A.D. 1903.

Further bye-laws as to buildings.

122. The Council may make byelaws with respect to the following matters:—

- (1) The materials with which new buildings shall be constructed :
- (2) The manner in which and the materials with which grates stoves and fire places shall be set in new buildings :
- (3) For providing in new buildings containing separate sets of chambers or offices or rooms constructed or adapted to be tenanted by different families or occupiers that the floors and staircases shall be of fire-resisting materials.

Means of escape from buildings in case of fire.

123. Every new building exceeding thirty-five feet in height (used or intended to be used as a tavern hotel hydropathic establishment boarding-house or school) shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Council shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

Nothing in this section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

As to temporary and movable buildings.

124.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Council for permission so to do and such application shall be accompanied by a plan and sections of the proposed building drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

(2) The Council shall within one month after the delivery of the plan and sections and specification signify in writing their approval or disapproval of the intended building to the person proposing to erect or set up the same.

(3) The Council may attach to their approval any condition which they may deem proper with regard to the sanitary arrangement of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand. A.D. 1903.
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(4) If any such building is commenced erected or set up without such application accompanied by such plans sections and specification or after the disapproval of the Council or before the expiration of one month without such approval or is in any respect not in conformity with any condition attached by the Council to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Council or any prolongation thereof the owner of such building shall be liable to a penalty for every such offence not exceeding forty shillings and to a daily penalty not exceeding the like amount and the Council may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion.

(5) The following buildings and works shall be exempt from the operation of this section :—

(A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the district in respect to new buildings and any tent not remaining for more than seven days ;

(B) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be pulled down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Council may cause the same to be pulled down or removed ;
 and

(c) Any wooden or other structure or erection erected or set up for the purpose of protecting or of preventing the acquisition of right of light.

125. Where a temporary or other building referred to in the last preceding section is taken down or removed by the Council under the powers of this Part of this Act the Council may sell the materials thereof or any part of them and shall apply the proceeds

Power to sell
 materials of
 temporary
 buildings.

A.D. 1903. — of the sale in or towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance thereof to the owner of such building.

As to
separate
sewers.

126. Where under the provisions of the Public Health Acts or this Act the Council have power to require any street to be sewered by reason of such street not having theretofore been sewered to their satisfaction they may require the provision of separate sewers for the reception of surface water and of sewage respectively and the Council may if such separate sewers have been provided from time to time by resolution declare that any sewer or sewers for the time being belonging to them shall be appropriated and used for surface water only or for sewage only and where in any street provision has been made for separate sewers for surface water and for sewage as aforesaid no sewage shall be allowed to pass into the surface water sewer and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers. Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. Provided that in the case of any house or premises existing at the time of the provision of separate sewers as aforesaid the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient to effectually drain such house or premises the Council shall at their own expense make all necessary alterations to the drains and pipes of such house or premises in order to keep separate the sewage and surface water drainage thereof and pending any such alteration the said penalty shall not apply.

Council may
require en-
larged sewer.

127. If in any new street the Council for the purpose of main drainage or otherwise shall require a larger sewer or drain to be made than they consider necessary for the ordinary sewerage or drainage of such new street the person laying out such new street shall construct such enlarged sewer or drain in accordance with the requirement of the Council and the additional cost thereof as ascertained by the surveyor shall be paid by the Council.

Council may
take proceed-
ings for pre-
venting ob-
structions in
water-
courses.

128. The Council may either in their own name or in the name of any other person with his consent take such proceedings by indictment action or otherwise as they may deem advisable for the purpose of preventing obstruction of any watercourse or outfall for water or for the removal of any obstruction from any watercourse or outfall for water.

129. If any watercourse or ditch situate upon land in the district laid out for building or on which any such land abuts requires in the opinion of the Council to be wholly or partly filled up or covered over the Council may by notice in writing require the owner or owners of such land before any building is commenced or proceeded with to execute such works as may in their opinion be necessary for effecting the objects aforesaid or for substituting for such watercourse or ditch a pipe drain or culvert with all the necessary shoots and means for conveying such water therinto. All works required by the Council to be done under this section shall be completed to the satisfaction of the surveyor before any building operations on such land are proceeded with:

A.D. 1903.
Covering of
ditches.

Provided that nothing in this section shall authorise the Council to require the filling up or covering over of any watercourse or ditch wholly or partially belonging to any other person than the owner of the land laid out for building without the consent of such person save and except in the case of an owner of land already laid out for building in which case no consent shall be necessary.

Any person who shall be guilty of any act or omission in contravention of the provisions of this section shall be liable to a penalty of not exceeding five pounds and a daily penalty not exceeding forty shillings.

130. Nothing contained in this Part of this Act or in any byelaws to be made thereunder shall apply to any building (not being a dwelling house) belonging to any railway company and used by such company as a part of or in connection with their railway.

Exemption
of railways.

PART VIII.

ADVERTISEMENTS AND SKY SIGNS.

131.—(1) Every hoarding or similar structure in or abutting on or adjoining any street shall be securely erected and maintained.

As to hoardings and other structures for advertising purposes.

(2) It shall not be lawful after the passing of this Act to erect wholly or partly for advertising purposes any hoarding or similar structure to a greater height than twelve feet above the level of such street in or abutting on or adjoining any street without the consent of the Council and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the maintenance of such hoarding or similar structure as the Council may determine.

A.D. 1903.
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(3) The owner or other person using any hoarding wall or other structure for advertising purposes whether erected before or after the passing of this Act shall at all times hereafter keep and maintain the same in proper and safe repair and condition and in the event of any paper affixed for advertising purposes to such hoarding wall or other structure falling off or becoming detached shall forthwith remove and clear away such paper.

(4) Any person who acts in contravention of any of the provisions of this section or who violates any conditions made or the terms of any consent given in pursuance of such provisions shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(5) Any consent or condition given or made under this section may be under the hand of the clerk or surveyor.

Restrictions
on advertis-
ing vehicles.

132. It shall not be lawful in any street in the district to use any vehicle exclusively or principally for the purpose of displaying advertisements without the consent of the Council which consent shall be in writing and may be for such time and contain such terms and conditions as the Council think fit. Any person who acts in contravention of the provisions of this section or who violates any conditions made or the terms of any consent given in pursuance of such provisions shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Any person aggrieved under this or the preceding section by the refusal of the Council to give such consent or by the terms or conditions attached to such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after the decision of the Council is notified to him in writing under the hand of the clerk provided he gives twenty-four hours' notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as they think fit.

Regulations
as to sky
signs.

133.—(1) It shall not be lawful to erect or fix to upon or in connexion with any building or erection any sky sign and it shall not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Council and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed :

Provided that in any of the following cases a licence of the Council under this subsection shall become void namely :— A.D. 1903.

- (i) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the surveyor ;
- (ii) If any change be made in the sky sign or any part thereof ;
- (iii) If the sky sign or any part thereof fall either through accident decay or any other cause ;
- (iv) If any addition or alteration be made to or in the house building or structure on over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof ; or
- (v) If the house building or structure over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed :

Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Council to take proceedings for the taking down and removal of the sky sign in the same manner and with the same consequences as to recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

PART IX.

SANITARY PROVISIONS.

134. No pipe used for the carrying off of rain water from any roof shall be used for the purpose of carrying off the soil or drainage from any privy or watercloset Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Rain-water pipes not to be used as soil pipes.

135. No water pipe stack pipe or down spout in existence at the date of the passing of this Act used for conveying surface water from any premises shall be used or be permitted to serve or to act as a ventilating shaft to any drain Any person who

Water or stack pipes not to be used as ventilating shafts.

[Ch. ccxvii.] *Beckenham Urban District Council* [3 EDW. 7.]
Act, 1903.

A.D. 1903. — shall offend against this section after fourteen days from the service upon him by the Council of notice of such offence shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Soil pipes to be ventilated. **136.** The soil pipes of the waterclosets within houses and buildings shall be properly ventilated by means of a pipe carried up therefrom or by such other method as the Council shall direct and any owner or occupier of a house or building who shall neglect or fail to comply with any requirement of the Council under this section for a period of twenty-eight days after notice in writing of such requirement and the mode in which the same is to be complied with shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Regulation dustbins. **137.** The owner of every dwelling-house may be required by the Council to provide galvanized iron dustbins in lieu of ashpits and such bins shall be of such size and construction as may be approved by the Council and any owner who fails within fourteen days after notice given to him to comply with the requirements of the Council shall for every such offence be subject to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that this section shall not apply to any bins or ashpits in use at the commencement of this Act so long as the same are of suitable size and in proper order and condition.

Charge for removing trade refuse. **138.** If any trade refuse building materials or rubbish of a like description shall be deposited in any dustbin ashpit or ashtub the Council may make a reasonable charge for the removal of the same which charge shall be paid to the Council by the occupier of the premises in respect of which the charge is made and may be recovered summarily as a civil debt.

Cleansing of cisterns &c. **139.** The Council may from time to time make byelaws for securing the cleanliness and freedom from pollution of tanks cisterns and other receptacles used for storing water used or likely to be used by man for drinking or domestic purposes or for manufacturing any liquid to be used by man for drinking whether aerated or otherwise.

Provision as to houses without proper water supply. **140.** The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

141.—(1) On complaint made on oath by the medical officer or the inspector of nuisances that he has reasonable grounds for believing the existence of a nuisance any justice may grant a warrant to him to inspect any drain closet or cesspool or any water supply sink trap syphon pipe or other work or apparatus connected therewith and on such warrant being granted for the purpose of ascertaining the course of any such work the medical officer or inspector of nuisances as the case may be at reasonable times in the day-time after not less than twenty-four hours' notice in writing has been given to the occupier of the premises to which such drain closet or cesspool water supply sink trap syphon pipe or other work or apparatus is attached or if they are unoccupied to the owner or if such owner or occupier is not known or cannot be found left on such premises may enter and cause the ground to be opened wherever the medical officer or inspector of nuisances thinks fit doing as little damage as may be.

A.D. 1903.
Inspection
of drains.

(2) If any person obstruct or attempt to obstruct or incite any person to obstruct the medical officer or inspector of nuisances or assistants in the exercise of any of the powers conferred by this section he shall for every such offence be liable to a penalty not exceeding five pounds.

(3) If any such drain closet or cesspool water supply sink trap syphon pipe or other work or apparatus be found on inspection to be properly made in accordance with the Acts and byelaws in force within the district and in proper order and condition the Council shall cause the same to be reinstated and made good as soon as may be and the expenses of examining reinstating and making good the same shall be defrayed by the Council and full compensation shall be made by them for all damage or injury done or occasioned by such examination.

(4) If any such drain closet or cesspool water supply sink trap syphon pipe or other work or apparatus be found on inspection not to have been properly made as aforesaid or to be in bad order and condition and to require cleansing alteration or amendment or to be filled up the Council shall cause notice to be served on the owner or occupier of the premises upon or in respect of which the inspection was made requiring him forthwith or within a reasonable time specified in the notice to do what is necessary to place the work in proper order and condition.

(5) If such notice is not complied with the said owner or occupier shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council if

A.D. 1903. — they think fit in lieu of proceeding for a penalty may enter upon the premises and execute the works and may recover the expenses incurred by them in so doing from the person in default summarily as a civil debt.

(6) For the purposes of this section the word “drain” includes any sewer which is not vested in the Council.

Owners &c.
to permit
drains to be
tested.

142.—(1) Whenever the medical officer has reasonable grounds for believing that the drains connected with any building are defective so as to cause risk to health he may after twenty-four hours’ notice and with the consent (except in the case of houses let in separate dwellings) of the owner or occupier of such building or in the event of objection by any such owner or occupier after obtaining an order of a court of summary jurisdiction apply such test (except the test of water under pressure) as he may consider efficient to such drains for the purpose of discovering any defects therein. Any owner or occupier who refuses notwithstanding such order to allow such test to be made shall be liable to a penalty not exceeding forty shillings and to a daily penalty of twenty shillings.

(2) If the drains be found defective the owner or occupier of the premises shall be bound (subject to the terms of any lease or other contract) on receiving notice from the Council to that effect specifying generally the nature of the defect to carry out all necessary operations for remedying the same within a reasonable time to be named in such notice and if he makes default in so doing the Council may enter and execute the works and recover the costs thereof from the owner or other person liable under the lease or contract in a summary manner as a civil debt or where the owner is the person liable as private improvement expenses are recoverable under the Public Health Act.

(3) For the purposes of this section the word “drain” includes any sewer which is not vested in the Council.

Council may
order houses
to be drained
by a com-
bined opera-
tion.

143. If it appear to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Council may when the drains of such house are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners of such houses in

such manner as the Council shall determine and if constructed by the Council may be recovered by the Council from such owners summarily as a civil debt. Provided that the Council shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Council.

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144. Where two or more houses or other buildings belonging to the same owner are connected with a public sewer or cesspool by a single private drain an application may be made under section 41 of the Public Health Act 1875 (relating to complaints as to nuisances from drains) and the Council may recover any expenses incurred by them in executing any works under the powers conferred on them by that section from the owner or owners of the houses or buildings and such expenses may be recovered summarily as a civil debt or may be declared by the Council to be private improvement expenses under the Public Health Acts and may be recovered accordingly.

Extension
of section 41
of Public
Health Act
1875.

For the purposes of this section the expression “drain” includes a drain used for the drainage of more than one building whether belonging to one or more owners.

145. It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Council except in accordance with the provisions of the byelaws relating to the drainage of new buildings.

As to re-
construction
of drains.

Any person offending against this section shall be liable to a penalty not exceeding five pounds and a daily penalty not exceeding five shillings.

146. Before any drain existing at the time of the passing of this Act and then not communicating with any sewer of the Council shall be made to communicate with any sewer of the Council the Council may require the same to be laid open for examination by the inspector of nuisances and no such communication shall be made until the inspector of nuisances shall certify that such drain may be properly made to communicate with such sewer.

Council may
require old
drains to be
laid open for
examination
by inspector
of nuisances
before com-
municating
with sewers.

147. The powers of the Council under section 39 of the Public Health Act 1875 and section 20 of the Public Health Acts Amendment Act 1890 shall extend to authorise them to provide and maintain in proper and convenient situations sanitary conveniences in or under any street repairable by the inhabitants at

Public con-
veniences
and lava-
tories.

[Ch. ccxvii.] *Beckenham Urban District Council* [3 EDW. 7.]
Act, 1903.

A.D. 1903. — large and to provide and maintain in proper and convenient situations lavatories in or under any such street for the use of the public and to employ and pay attendants and to make reasonable charges for the use of any sanitary convenience (other than a urinal) or of any lavatory so provided and the Council may make byelaws for the management of such sanitary conveniences and lavatories and as to the conduct of persons frequenting the same and may let any such sanitary conveniences and any such lavatories for such periods at such rents and subject to such conditions as to the charges to be made for the use thereof and otherwise as they may think proper.

Urinals to be attached to refreshment rooms.

148. Where any inn public-house beer-house eating-house or other place of public entertainment built before or after the passing of this Act has no urinal belonging or attached thereto the Council may by notice in writing require the owner of such inn public-house beer-house eating-house or other place of public entertainment to provide and maintain on the premises a reasonably sufficient urinal or urinals to the satisfaction of the Council. Any person who fails within a reasonable time to comply with any requirement under this section shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings.

Council may require removal or alteration of urinals.

149. If any urinal or other sanitary convenience now or hereafter opening on any street shall in the opinion of the Council be so placed or constructed as to be a nuisance or offensive to public decency the Council by notice in writing may require the owner to remove such urinal or convenience or otherwise to re-construct the same in such a manner and with such materials as may be required to abate the nuisance and remove the offence against public decency.

Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Ejection of steam not to be an annoyance to public.

150. All steam ejected from any fixed engine or the boiler or condensers thereof and all condensing water above a temperature of one hundred and ten degrees Fahrenheit so ejected and all spent and ejected steam arising or produced in any trade business or manufacture shall be so discharged as not in the opinion of the Council to be an annoyance to the public but nothing in this section shall apply to steam ejected from any locomotive boiler or engine now or hereafter belonging to any railway company.

Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings. A.D. 1903.

151. For the purposes of section 112 of the Public Health Act 1875 a trade business or manufacture shall be deemed to be established anew not only if it is established newly but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of six months or upwards or if any premises on which it is for the time being carried on are enlarged without the sanction of the Council but a trade business or manufacture shall not be deemed to be established anew on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area. Defining establishing of a new business.

152. For the purposes of the Public Health Act 1875—

(A) Any gutter drain shoot stackpipe or down spout of a building which by reason of its insufficiency or its defective condition shall cause damp in such building or in an adjoining building ;

(B) Any deposit of material in or on any building or land which shall cause damp in such building or in an adjoining building so as to be dangerous or injurious to health ;

shall be deemed to be a nuisance within the meaning of the said Act. As to nuisances.

153.—(1) The Council may on the erection of any new building when a sewer and water supply sufficient for the purpose are reasonably available require that such new building shall be provided with proper and sufficient waterclosets according as circumstances may require. Power to require waterclosets or earth-closets for new buildings.

(2) The Council may on the erection of any new building when a sewer and water supply sufficient for a watercloset are not reasonably available require one or more proper and sufficient earthclosets and ashpits to be provided at or in connection with such building.

(3) Any person offending against any requirement of the Council under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

[Ch. ccxvii.] *Beckenham Urban District Council* [3 EDW. 7.]
Act, 1903.

A.D. 1903.

Apportion-
ment of ex-
penses in
case of joint
owners.

154. Where under the provisions of this Part of this Act the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Part of this Act are recoverable by the Council from the owner shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor.

Charge for
clearing
closets of
rubbish &c.

155. If any rubbish or solid matter be deposited in any watercloset so as to cause or be likely to cause a stoppage or blocking up of the closet or the pipe leading therefrom or an interference with the closet apparatus the Council may make a reasonable charge for the removal of such obstruction and the repair (if necessary) of the closet and apparatus which charges shall be paid to the Council by the occupier of the premises in respect of which the charge is made and may be recovered summarily as a civil debt.

Provision
for filling
cesspools &c.

156. If it shall appear to the Council by the report of the medical officer or inspector of nuisances that any cesspool or other receptacle used or formerly used as a receptacle for excreta or other obnoxious matter or for the whole or any part of the drainage of a house or any ashpit or any well or disused well belonging to any house or part of a house is prejudicial to health or otherwise objectionable for sanitary reasons and that it is desirable that the same should be filled up or removed or so altered as to remove any such objection as aforesaid the Council may if they think fit by notice in writing require the owner or occupier of such house or part of a house within a reasonable time to be specified in the notice to cause such cesspool receptacle ashpit or well to be filled up or removed and any drain communicating therewith to be effectually disconnected destroyed or taken away or to cause such cesspool receptacle ashpit or well to be so altered as to remove any such objection as aforesaid.

Where it appears that any such cesspool receptacle ashpit or well is used in common by the occupiers of two or more houses or parts of houses the notice for filling up or removal of any such cesspool receptacle ashpit or well may be served on any one or more of the owners or occupiers of such houses and it shall not be necessary to serve such notice on all such owners or occupiers.

If default is made in complying with the requisitions of a notice under this section the Council may themselves carry out the requisitions and may recover the expenses incurred by them

in so doing from the owners or occupiers in default in a summary manner as a civil debt or where the owners are the persons liable as private improvement expenses are recoverable under the Public Health Acts. A.D. 1903.

157. If after the passing of this Act a watercloset or drain is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a fine not exceeding twenty pounds: Improper construction or repair of watercloset or drain.

Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any fine and the said other person may be summarily convicted of the offence.

158. It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal slaughtered within or brought into the district and any person offending against this enactment or exposing or depositing for sale within the district a carcase so blown or inflated or any part thereof shall be liable to a penalty not exceeding twenty shillings. Prohibition of blowing or inflating carcasses.

PART X.

ELECTRICITY.

159.—(1) The Council may within the district provide sell let for hire and fix set up alter repair and remove but shall not manufacture lamps meters electric lines fittings apparatus and things for lighting and motive power and for all other purposes for which electrical energy can or may be used or otherwise necessary or proper for the supply distribution consumption or use of electrical energy and may provide all materials and do all works necessary or proper in that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of Power to supply electric fittings.

[Ch. ccxvii.] *Beckenham Urban District Council* [3 EDW. 7.]
Act, 1903.

A.D. 1903. such lamps meters electric lines fittings apparatus and things as aforesaid and for securing (both as regards the consumer and third parties) their safety and return to the Council as the Council may think fit or as may be agreed upon between them and the person to or for whom the same are sold supplied let fixed set up altered repaired or removed.

(2) Any expenses incurred by the Council in carrying into effect the provisions of this Part of this Act shall be deemed to be expenses incurred by the Council under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses.

(3) Any moneys received by the Council under this Part of this Act shall be applied in manner provided by section 52 of the Beckenham Electric Lighting Order 1893 except capital moneys which shall be applied in manner provided by section 53 of the said Order.

Electric lighting consumers to give notice to Council before removing.

160. Twenty-four hours' notice in writing shall be given to the Council by every electric lighting consumer before he shall quit any premises supplied with electric current by the Council and in default of such notice the consumer so quitting shall be liable to pay to the Council the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Council to supply electric current to such premises whichever shall first occur. Provided that notice of the effect of this enactment shall be endorsed on every demand note for rent for current.

Council may refuse to supply electrical energy in certain cases.

161. The Council may refuse to supply electrical energy to any person whose payment for the supply of electrical energy is for the time being in arrear whether such payment be due to the Council in respect of a supply to the same or other premises.

Discount on electric lighting and power accounts.

162. The Council may if they think fit make an allowance by way of discount not exceeding the rate of ten pounds per centum on all sums of money due to the Council for the supply of electric light or electrical power or energy from every person who pays the same within such time of the demand thereof as the Council think fit to prescribe in that behalf and notice to this effect shall be endorsed on every demand note in respect of such charges. Provided that the Council shall make the same allowance to all consumers under similar circumstances.

163. Notwithstanding anything in section 9 of the Electric Lighting Act 1882 contained the annual statement of accounts of the electric lighting undertaking of the Council for the time being shall after the passing of this Act be filled up on or before the thirtieth day of June in every year and shall be made up to the thirty-first day of March next preceeding and section 9 of the Electric Lighting Act 1882 shall as from the passing of this Act be read and have effect as regards the undertaking of the Council as if the thirtieth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December.

A.D. 1903.

Altering date
for filling up
annual ac-
counts for
electric
lighting.

PART XI.

FIRE BRIGADE.

164. Any police constable acting under the orders of his superior officer and any member of the fire brigade of the Council being on duty and any officer of the Council may enter and if necessary break into any building in the district being or reasonably supposed to be on fire or any building or land adjoining or near thereto without the consent of the owner or occupier thereof respectively and may do all such acts and things as they may deem necessary for extinguishing fire in any such building or for protecting the same or rescuing any person or property therein from fire.

Power to
police con-
stable to
enter and
break open
premises in
case of fire.

165.—(1) The captain or superintendent of the fire brigade of the Council or other officer of such fire brigade for the time being in charge of the engine or other apparatus for extinguishing fires attending at any fire within the district shall from the time of his arrival and during his presence thereat have the sole charge and control of all operations for the putting out of such fires whether by the Council or any other fire brigade including the fixing of the positions of fire engines and apparatus the attaching of hose to any water pipes or water supply and the selection of the parts of the building on fire or of adjoining buildings against which the water is to be directed.

Captain of
fire brigade
or other
officer to
have control
of opera-
tions.

(2) The officer in charge of the police at any fire shall have power to stop or regulate the traffic in any street whenever in his opinion it is necessary or desirable to stop or regulate such traffic for the purpose of extinguishing the fire or for the safety or protection of life or property and any person who wilfully disobeys

[Ch. ccxvii.] *Beckenham Urban District Council* [3 EDW. 7.]
Act, 1903.

A.D. 1903. — any order given by such officer in pursuance of this section shall be liable to a penalty not exceeding five pounds.

Firemen's
cottages.

166. The Council may subject to the sanction of the Local Government Board and under such conditions as they may prescribe from time to time erect on any land belonging to them and not specifically appropriated to other purposes such cottages as they think fit for the habitation of their firemen and may let the said cottages or any of them to such firemen on such terms and conditions at such rent or free from rent as the Council think fit.

PART XII.

FINANCE.

Power to
borrow.

167. The Council may from time to time in addition to any moneys they are now authorised to borrow or which they may be authorised to borrow under the provisions of the Public Health Acts or any public general Act borrow at interest the following sums (that is to say :—

On security of the district fund and general district rate—

(A) For paying the costs charges and expenses of and in relation to this Act as hereinafter defined the sum requisite for the purpose ;

(B) For the purchase of land for and for the road widenings and improvements by this Act authorised any sum not exceeding in the whole sixty-eight thousand two hundred and fifty pounds :

On security of the tramway revenue the district fund and general district rate—

(c) For and in relation to tramway purposes any sums not exceeding in the whole fifty-five thousand pounds :

On security of the revenue of the electricity undertaking the district fund and general district rate—

(D) For and in relation to the wiring of houses and the supply of electric fittings the sum of twenty thousand pounds ;

(E) For the extension of the existing generating station and for the provision of additional machinery cables and apparatus the sum of thirty-eight thousand pounds :

And with the approval of the Board of Trade or of the Local Government Board as the case may be such further moneys as the Council may require in relation to the tramway or electricity undertakings of the Council or for any other purposes of this Act.

In calculating the sums which the Council may borrow under the provisions of any other enactment any sums they may borrow under this Act shall not be reckoned and the powers of the Council as to borrowing and re-borrowing under this Act shall not be restricted by any of the provisions of the Public Health Acts. A.D. 1903.
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168. The following sections of the Public Health Act 1875 shall extend and apply mutatis mutandis to and in relation to all mortgages made under the powers of this Act (that is to say):— Provision
as to mort-
gages.

- Section 236 (Form of mortgage) ;
- Section 237 (Register of mortgages) ;
- Section 238 (Transfer of mortgages) ; and
- Section 239 (Receiver may be appointed in certain cases).

169. The tramway revenue shall be applied—

- (1) In maintaining the tramways and so much of the street in which the same are laid as is required to be maintained and kept in good repair and condition by the promoters of tramways by section 28 of the Tramways Act 1870 :
- (2) In paying all working and other expenses including any rent payable under any lease granted to the Council of any tramway or tramways without the district properly chargeable to revenue :
- (3) In providing the interest on any moneys raised or borrowed by the Council for tramway purposes :
- (4) In providing the amount necessary to be paid into a sinking fund or redemption fund to provide for the repayment of the money so raised or borrowed and in providing the amounts necessary for any repayments by instalments :
- (5) In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Council upon the undertaking which fund shall be applicable to answer any deficiency at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing any part of the Council's tramways or of the works connected therewith and so

Application
of tramway
revenue.

A.D. 1903.

that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens. Provided that resort may be had to the reserve fund under the foregoing provision although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Council shall carry to the general district fund so much of any balance remaining in any year of the income of their tramway undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Council not be required for carrying on the undertaking and paying the current expenses connected therewith :

- (6) In case the tramway revenue shall be insufficient to meet the charges upon it the deficiency shall be provided by the Council out of the general district fund and if that fund be insufficient for the purpose then by an increase of the current year's general district rate or by an increase of the next general district rate made after the deficit is ascertained.

Repayment
of borrowed
moneys.

170. All moneys borrowed under the powers of this Act for the purposes respectively mentioned in the following subsections of the section of this Act the marginal note whereof is "Power to borrow" shall be repaid within any period not exceeding the following respective periods from the respective dates of the borrowing of such moneys respectively (hereinafter referred to as "the prescribed period") (that is to say) :—

For the purposes in subsection (A) five years ;

For the purposes in subsection (B) forty years ;

For the purposes in subsection (C) thirty years ;

For the purposes in subsection (D) ten years ;

For the purposes in subsection (E) thirty years.

Moneys borrowed with the approval of the Board of Trade or the Local Government Board as the case may be (including moneys so borrowed under the provisions of the section of this Act the marginal note whereof is "Scheme for fixing equated periods for repayment of loans") shall be repaid within such periods as those Boards may respectively sanction.

Mode of
payment off
of money
borrowed.

171. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly

or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund Provided that it shall not be obligatory to commence such repayments by instalments or to set apart or appropriate any moneys to or for the purposes of a sinking fund in respect of moneys borrowed under paragraphs (B) (C) and (E) of the section of this Act of which the marginal note is "Power to borrow" until after the expiration of three years from the date of borrowing the same. A.D. 1903.

172.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either— Sinking fund.

- (A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or
- (B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

[Ch. ccxvii.] *Beckenham Urban District Council* [3 EDW. 7.]
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(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided always that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of

which it is formed within the prescribed period the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct. A.D. 1903.
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(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

173. So long as any lands remain to be acquired by the Council under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on re-sale or exchange or by way of fine or premium on the grant or renewal of leases as aforesaid in the purchase of lands so remaining to be acquired but as to any capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms as may be approved by the Local Government Board. Provided that the amount to be applied in the purchase of land under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the acquisition of such lands. Provided further that the borrowing powers by this Act authorised for the acquisition of such lands shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section. Proceeds of
sale of sur-
plus lands.

174. If the Council out of the proceeds of the sale or disposition of lands or other moneys received on capital account repay any principal moneys borrowed under the powers of this Act the payments to any sinking fund applicable to the repayment of such principal moneys may be reduced to such extent and upon such terms as may from time to time be approved by the Local Government Board. Sinking fund
may be ad-
justed in cer-
tain events.

175.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may Annual re-
turn to Local
Government
Board with
respect to
sinking fund.

A.D. 1903. — require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default shall have been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

Power to
re-borrow.

176. The Council may except as hereinafter provided re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Act which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Council within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow Provided

that the Council shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose. Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period. A.D. 1903.

177. A person lending money to the Council shall not be bound to inquire as to the observance by the Council of any provision of this Act or be bound to see to the application or be answerable for any loss mis-application or non-application of the money lent by him or of any part thereof. Protection of lenders from inquiry.

178. All expenses incurred by the Council in carrying into execution the provisions of this Act except such of them as are properly chargeable to capital and payable out of borrowed moneys shall so far as the payment thereof is not otherwise provided for be paid out of the district fund and general district rate. Expenses of execution of Act.

All expenses incurred for or in relation to tramway purposes shall subject to the provisions of the section of this Act the marginal note of which is "Application of tramway revenue" be paid out of the tramway revenue.

179. Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts. Audit of accounts.

180. The Council may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans then contracted or about to be contracted by them under statutory borrowing powers (including the loans authorised by this Act) shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto. Scheme for fixing equated periods for repayment of loans.

No scheme made by the Council under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of

A.D. 1903. — this Act Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme except with the consent of such mortgagee.

The Council may with the sanction of the Local Government Board borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Council for their consent thereto.

Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

Mode of
raising
money.

181. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another Provided that the provisions of this Act whereof the marginal note is "Sinking Fund" shall apply in lieu of the provisions of section 15 of the Local Loans Act 1875.

PART XIII.

MISCELLANEOUS.

As to closing
baths.

182. The Council may close to the public and reserve the exclusive use of any swimming bath belonging to them and may grant the use thereof to any company body or persons either gratuitously or for payment for swimming contests practices or exhibitions of aquatic exercises and may demand and take such sums for the exclusive use of such baths or for admission of persons thereto as they may think fit:

Provided that no such swimming bath shall be closed under the powers of this section for more than six hours on any one day or on more than two days in one week.

Lands ac-
quired for
some pur-
poses of
Public
Health Act
may be used
for others.

183. Notwithstanding anything contained in section 175 of the Public Health Act 1875 any lands acquired by the Council in pursuance of any powers in that Act contained and not required for the purpose for which they were acquired may with the approval of and subject to such conditions as may be imposed by the Local Government Board be retained and used by the Council for any other purpose in like manner as if they had been originally acquired for such last-mentioned purpose.

184. Any unfenced ground adjoining or abutting upon any street shall for the purposes of the Vagrancy Act 1824 and any Act for the time being in force altering or amending the same be deemed a public place.

A.D. 1903.
Unfenced ground to be deemed a public place.

185. Every person who shall on Sunday in any street within the district cry or call out for sale any newspapers journal or serial or advertise by any cry or call any newspaper journal or serial or ring any bell or use any horn whistle or noisy instrument or create any noise whatsoever or howsoever for the purpose of selling any newspaper journal or serial or attract or attempt to attract the attention of any person or persons by means of any noise whatsoever whether vocal or otherwise for the purposes aforesaid or any of them shall for every such offence be liable to a penalty not exceeding forty shillings.

Street cries &c.

186. Whenever the Council under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work act or thing in default of the owner or occupier and in the absence of misconduct or negligence on the part of the Council or of any contractor or person employed by them are required to pay any damages penalties costs charges and expenses for or in respect of or consequent upon the executing re-executing or altering such work act or thing the amount thereof when paid shall be deemed to be part of the expenses payable by such owner or occupier and shall be recoverable accordingly.

In executing works for owner Council not liable for damages save in case of negligence.

187.—(1) The Council may if they think fit grant a gratuity of any sum (not exceeding one year's pay) to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age or other infirmity or to the widow or family of any such officer or servant who may die in their service.

Power to grant gratuities in certain cases.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

188. All the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 (except so much thereof as relates to byelaws of a rural sanitary authority) shall apply to all byelaws made by the Council under the powers of this Act except byelaws to which the provisions of the Tramways Act 1870 or the Electric Lighting Act 1882 are applied by this Act.

General provisions as to byelaws.

A.D. 1903.
Penalty on
occupiers
refusing
execution of
Act.

189. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Council under Part VII. and Part IX. of this Act or under any byelaw made under the powers of Part VII. of this Act then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Council to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

Informations
by whom to
be laid.

190. Save as otherwise in this Act expressly provided all informations and complaints under and for the breach of any of the provisions of this Act or of any byelaws made thereunder or of the Town Police Clauses Act 1847 or of the Towns Improvement Clauses Act 1847 as incorporated with the Public Health Act 1875 or the Town Police Clauses Act 1889 may be laid and made by any officer of the Council duly authorised in that behalf or by the clerk.

Authentica-
tion and
service of
notices.

191. In the case of any notice or demand under this Act requiring authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication Notices orders and any other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided always that in the case of any company any such notice or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

As to appeal.

192. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding or revocation of any certificate licence consent or approval of or by the Council or of or by any officer or valuer of the Council or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the

Summary Jurisdiction Acts and in regard to any such order the Council may in like manner appeal. A.D. 1903.

193. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties.

194. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted. Damages and charges to be settled by justices.

195. All penalties recovered by the Council or any officer of the Council on their behalf under this Act or any byelaw thereunder shall be paid to the treasurer to the Council and carried by him to the credit of the district fund or to such other fund as the Council direct. Penalties to be paid over to treasurer.

196. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts. Compensation to be determined under Public Health Acts.

197. The Council when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works land or money but in the case of land for the alienation of which the consent of any public department is required only with such consent. Compensation may be in land.

198. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence. Saving for indictments.

A.D. 1903. —
Powers of
Act cumu-
lative.

199. All powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Crown
rights.

200. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Expenses of
Act.

201. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with the obtaining of the resolution of owners and ratepayers aforesaid shall after taxation by the taxing officer of the House of Lords or House of Commons be paid by the Council out of moneys to be borrowed by the Council under this Act but may in the first instance be paid by the Council out of the district fund and general district rate and moneys so paid shall be recouped by and charged to the moneys to be borrowed under this Act.

The SCHEDULES referred to in the foregoing Act. A.D. 1903.

FIRST SCHEDULE.

PROPERTIES WHOLLY SITUATED IN THE PARISH AND DISTRICT
OF BECKENHAM OF WHICH PARTS ONLY MAY BE TAKEN.

No. on deposited Plans.	Description of Property.
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BECKENHAM ROAD.

NORTH SIDE.

6	Field.
9	Garden.
10	Private Road.
11	Yard.
12	Garden.
13	Land.
14	Garden.
15	Garden.
16	Garden.

SOUTH SIDE.

64	Garden and steps.
63	Field.
62	Garden and carriage drive.
56	Garden and carriage drive.
53	Garden and carriage drive.
51	Land.

HIGH STREET.

NORTH SIDE.

17	Field.
18	Field and shed.
19	Shed.
20	Smithy.
21	Passage and yard.
25	Garden stables coachhouse out buildings passage and yard.
26	Plantation.
27	Coachhouse.
30A	Stable.
31A	Workshop.

[Ch. ccxvii.] *Beckenham Urban District Council* [3 Edw. 7.]
Act, 1903.

A.D. 1903.

No. on deposited Plans.	Description of Property.
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HIGH STREET—*cont.*

SOUTH SIDE.

32	Garden.
34	School and forecourt.
35	Field.
36	Yard stables and coachhouse.
37	Frontage public house yard and outbuildings.
38A	Passage.
40	Stables coach-house motor-works and yard.
43 } 43A }	Workshop stables and yard.
43A } 44 }	Workshop stables and yard.
45	Frontage.
46	Field.
47	Garden.
48 } 49 }	Garden and cart entrance.
50	Cart entrance.

ARTHUR ROAD.

65	Land.
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KENT HOUSE ROAD.

WEST SIDE.

5	Frontage.
6	Frontage.
7	Frontage.
8	Frontage.
9	Frontage.
12	Land.

EAST SIDE.

10	Land.
11	Land.

CROYDON ROAD (opposite Cedars Road).

1	Garden and land.
2	Garden and lawn.
3	Yard.
4	Frontage.
5	Frontage.
6	Garden.
7	Frontage house outbuildings and garden.
8	Passage.
9	Land.

[3 EDW. 7.] *Beckenham Urban District Council* [Ch. ccxvii.]
Act, 1903.

No. on deposited Plans.	Description of Property.	A.D. 1903.
CROYDON ROAD (Elmer's End).		
10	Garden.	
11	Garden.	
12	Garden.	
13	Passage.	
14	Garden.	
15	Garden.	
16	Garden.	
17	Garden.	
18	Garden.	
19	Garden.	
20	Garden.	
21	Garden.	
22	Garden.	
23	Frontage.	
24	Frontage.	
25	Frontage.	
BROMLEY ROAD.		
26	Garden.	
SCOTT'S LANE.		
27	Garden.	
HAYES LANE.		
28	Field and entrance to gateway.	

SECOND SCHEDULE.

HEADS OF PROPOSED AGREEMENT for LEASE to THE BRITISH ELECTRIC TRACTION COMPANY LIMITED.

1. The Council with the consent of the ratepayers to promote a Bill in the ensuing session of Parliament authorising the construction of tramways in Beckenham (a) from the Penge boundary Beckenham Road to the junction of High Street and Manor Road (b) from the Lewisham boundary in Kent House Road along Kent House and Thesiger Roads to the Penge boundary in Parish Lane and also authorising the execution of the street widenings and improvements hereinafter mentioned.

2 On the necessary powers being granted the Council except as to rolling stock to construct and electrically equip such tramways (and carsheds sufficient for the service of the Beckenham and Penge section if required by the company) having first obtained the reasonable approval of the company to the specification The tramways to be completed within a period of three

[Ch. ccxvii.] *Beckenham Urban District Council* [3 EDW. 7.]
Act, 1903.

A.D. 1903. — years from the Royal Assent to the Bill The track between the metals and for a distance of eighteen inches beyond on either side of the rails (single or double) to be paved with hard wood (or other approved material as determined by the Council not exceeding the cost of hard wood paving) laid on a concrete bed.

3. The Council to grant a lease of the tramways to the British Electric Traction Company for the period of twenty-eight years from the Board of Trade's certificate of completion The lease as to tramway (b) being conditional on a mutually satisfactory arrangement being made by the Council for the use of a tramway giving a through connection from the Beckenham boundary to High Street Sydenham The consideration for the lease to the company to be as follows :—

(A) The company to pay to the Council during the first ten years of the lease $6\frac{1}{2}$ per cent. per annum during the next five years of the lease 7 per cent. per annum during the succeeding five years of the lease $7\frac{1}{2}$ per cent. per annum and during the remainder of the lease 8 per cent. per annum on the capital sum (including the reasonable cost of promotion of the Bill) expended by the Council on the construction of the lines &c. as per clause 2 above and on any incidental works in connection therewith and on any alteration thereof required by statute or regulation of the Board of Trade but not including generating station or generating plant :

(B) The company to pay to the Council in respect of the street widenings and improvements included in Mr. Angell's scheme No. 1 (the plan of which has been signed by the engineer to the company) and any alteration thereof within the limit of cost hereinafter prescribed from the date of the engineer's certificates of payment the sums following :—

(1) Throughout the whole period of twenty-eight years an annual sum equivalent to the sinking fund and interest which would be required to repay the capital cost (limited to 3,300/.) of so much of the said street works as consist of wood paving and macadam The rate of interest on which the calculation is made being the most favourable which can be obtained by the Council and the term of the loan ten years ;

(2) In respect of the net cost of the remainder of the street widenings and improvements (such net cost not to exceed 27,700/.) an annual sum equivalent to the sinking fund and interest which would be required to repay a loan longer by four years than that granted to the Council for the whole of the street works and at the most favourable rate of interest obtainable by the Council The Council to apply for and to endeavour to obtain the longest term allowable in such cases ;

(3) The sinking fund and interest on a loan for raising the railway over Beckenham Road (if executed with the consent of the Traction Company and which consent shall not be unreasonably withheld) ;

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Act, 1903.

Provided always that in lieu of the terms above prescribed the Council shall have the option at the expiration of the first ten years of the term of twenty-eight years by three calendar months' notice in writing to require the company (failing agreement between the parties) to submit to arbitration under the provisions of the Arbitration Act 1889 the terms upon which the lease is to continue for the remainder of the said period of twenty-eight years. In such arbitration regard shall be had to the profits which the Croydon and District Electric Tramways as defined in clause 16 hereof are at that time earning and to the value of the tramways then existing in the parish of Beckenham in relation to the whole scheme. A.D. 1903.

4. The Council's engineer shall be the engineer for the construction of the tramways but if the Council require any further engineering assistance the company shall provide the same without any expense to the Council. Provided that in case of difference between the engineer of the Council and the engineer of the company the same shall be referred to a consulting engineer to be agreed between the engineers of the company and the Council for his decision or failing agreement an engineer to be appointed by the Board of Trade and the fees of such consulting engineer shall be charged as part of the expenses of obtaining the Bill or constructing the tramways as the case may be.

5. Provided the tramways mentioned in clause 1 or either of them are constructed by the Council and leased to the company the Council shall have the option to be exercised within six months of the passing of the Bill of supplying at the price of 2*l.* per Board of Trade unit (with a minimum annual payment of 900*l.*) the whole of the current required for working efficiently all the tramways within the district of Beckenham. In case such option is exercised the Council shall be under the obligation to supply and the company shall be under the obligation to take current for working all the company's tramways in Penge at a reduced rate to be agreed or settled by the Board of Trade. Terms and conditions in respect to measurement and safeguarding of the respective statutory and other obligations of the parties and as to periodical revision of price to be agreed upon or referred to arbitration in case of difference. The electrical equipment covered by clauses 2 and 3 shall include all cables from the switch-board at the central station in Arthur Road to the tramway.

6. The roadway between the track and 18 inches on either side thereof to be maintained by the Council at the cost of the company on the following terms:—

Single line wood paving	-	-	175 <i>l.</i>	per route mile.
Double double single or interlacing lines				
wood paving -	-	-	260 <i>l.</i>	„ „
Single line not paved with wood blocks	135 <i>l.</i>	„	„	„
Double double single or interlacing lines				
not paved with wood blocks -	-	-	175 <i>l.</i>	„ „

7. All payments to the Council to be quarterly and except as otherwise herein provided to date from the Board of Trade's certificate of completion

[Ch. ccxvii.] *Beckenham Urban District Council* [3 EDW. 7.]
Act, 1903.

A.D. 1903. Any sums payable as the equivalent for sinking fund and interest previously to the date of such certificate to be charged to capital account The certificate of the Council as to the amounts expended to be final as to such amounts Provided that if Parliament does not sanction the payment out of capital of any sums which may become due previous to the granting of the Board of Trade's certificate the same shall be paid by the company to the Council by ten annual instalments with the most favourable rate of interest obtainable by the Council The company is not to have the benefit of any suspension of the sinking fund which the Council may obtain from Parliament.

8. The Council to be at liberty to adopt such system of electrical equipment as they may determine In the event of any system other than the trolley system being adopted the company to have the option of withdrawing from the agreement.

9. The company to agree to provide all requisite rolling stock The Council to have the option of purchasing the same from the company on a valuation at the termination of the lease.

10. The company to the reasonable satisfaction of the Council to maintain repair and renew where necessary the tramway and equipment during their lease (except as to the roadway between the rails and for 18 inches on each side thereof) and with this exception and with the exception also as to rolling stock to hand over the same to the Council free of cost and in good working repair and condition on the termination of the lease The Council to renew the wood paving and macadam referred to in clause 3 (b) (1) as often as necessary during the currency of the lease.

11. The company to perform bear and fulfil all the duties liabilities responsibilities and obligations of the tramway authority during the period of their lease and be responsible for all accidents and damage arising from or connected with the working of the tramway (except in relation to the repair or non-repair of the roadway between and for 18 inches on each side of the outer rails of the tramway) and to save harmless and indemnify the Council therefrom.

12. The company to provide a proper and efficient service on the tramways at intervals to be agreed with the Council.

13. The company to pay all rates taxes and outgoings in respect of the occupation and user of the tramway The lines to be used for conveyance of passengers and small parcels only The lease not to be assigned nor other than company's cars to run over the tramway without the consent of the Council which shall not be unreasonably withheld.

14. A formal lease on the basis of these heads of agreement and containing all proper and usual clauses to be prepared The form thereof in case of difference to be settled by R. J. Parker Esq. of the Chancery Bar or one of the Conveyancing Counsel of the Court.

15. The company undertake to support the application of the Council for tramway powers herein referred to and not themselves to apply for such powers in respect of the same or any portion of the same lines in opposition to any promotion thereof by the Council.

[3 EDW. 7.] *Beckenham Urban District Council* [Ch. ccxvii.]
Act, 1903.

16. Nothing in this agreement contained shall prejudice the right of the Council to oppose any application by the company for power to construct a tramway in Beckenham parish or be construed as an admission on the part of the Council of the necessity for or desirability of any tramways in Beckenham other than those hereby contemplated. In the event of the company (which term for the purpose of this clause includes the owners and lessees for the time being of the tramways constructed or owned or the powers for which have been obtained by the British Electric Traction Company in Croydon and adjoining districts) succeeding either with the consent of the Council or against their opposition in obtaining powers for the construction of any such tramway including lines (a) and (b) referred to in Clause 1 hereof the company shall not construct the same but shall insert in the Bill or Order a clause transferring to the Council all the powers of the company in relation thereto and thereupon the Council shall construct such tramway and grant to the company a lease thereof in the case of tramways (a) or (b) aforesaid on the terms hereof and in the case of any other tramway in Beckenham parish on like terms both as to construction and lease except as to the nature and extent of the street improvements which shall be agreed or in default of agreement shall be settled by arbitration. Provided that the period of all leases to the company of tramways in Beckenham shall be so arranged as to expire on the same date.

A.D. 1903.

The Common Seal of the British Electric Traction Company Limited was hereto affixed this 21st day of October 1902.

In the presence of

JNO. S. RAWORTH }
E. GARCKE } Directors.



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